

REPORT ON PROCEEDINGS BEFORE

**JOINT SELECT COMMITTEE ON THE NSW
RECONSTRUCTION AUTHORITY**

**REVIEW OF THE OPERATIONS OF THE NSW RECONSTRUCTION
AUTHORITY REGARDING THE NSW EAST COAST SEVERE
WEATHER FROM MAY 2025**

At Jubilee Room, Parliament House, Sydney, on Monday 3 November 2025

The Committee met at 9:30.

PRESENT

Mr Clayton Barr (Chair)

The Hon. Scott Barrett

Mr Roy Butler

Ms Sue Higginson

The Hon. Cameron Murphy

Mr Richie Williamson

PRESENT VIA VIDEOCONFERENCE

Ms Liza Butler (Deputy Chair)

The Hon. Stephen Lawrence

Ms Tamara Smith

* Please note:

[inaudible] is used when audio words cannot be deciphered.

[audio malfunction] is used when words are lost due to a technical malfunction.

[disorder] is used when members or witnesses speak over one another.

The CHAIR: Good morning. Before we start the public hearing, I acknowledge the Gadigal people of the Eora nation, who are the traditional custodians of the land on which we meet at Parliament House. I also acknowledge the traditional custodians of the various lands on which our virtual witnesses are appearing at this hearing. I pay my respects to the Elders of the Eora nation, past and present, and extend that respect to any Aboriginal and Torres Strait Islander peoples who are present or are viewing the proceedings through the public broadcast.

Under section 93 of the NSW Reconstruction Authority Act, one of the statutory functions of this Committee is to review the operations of the NSW Reconstruction Authority relating to a disaster. This inquiry is focused on the authority's response to the May 2025 east coast severe weather event and other related matters. Today we are conducting the first of several public hearings as part of this review. We want to thank the witnesses who are appearing before the Committee today, both in person and virtually. We also want to thank the many stakeholders who have made written submissions to the inquiry. Their input is greatly appreciated.

My name is Clayton Barr. I am the member for Cessnock and I am the Committee Chair. With me today at Parliament House and online are my fellow Committee members. We have Ms Liza Butler, the member for South Coast and Deputy Chair; the Hon. Scott Barrett, MLC; Mr Roy Butler, the member for Barwon; Ms Sue Higginson, MLC; the Hon. Stephen Lawrence, MLC; the Hon. Cameron Murphy, MLC; Adjunct Professor Tamara Smith, the member for Ballina; and Mr Richie Williamson, the member for Clarence.

Mr JACOB WALSH, NSW State Director, Australian Red Cross, affirmed and examined

Mr BRENDAN PEARCE, Senior Adviser, Engagement, Australian Red Cross, sworn and examined

Ms JOY KYRIACOU, Director of Programs, Members and Volunteers, St Vincent de Paul Society NSW, before the Committee via videoconference, sworn and examined

Ms CLARE VAN DOORN, Regional Director, Operations North East, St Vincent de Paul Society NSW, before the Committee via videoconference, sworn and examined

The CHAIR: I welcome our first panel of witnesses. Please note that the Committee staff will be taking photos and videos during the hearing. The photos and videos may be used for social media and public engagement purposes on the Legislative Assembly's social media pages, websites and public communication materials. Please inform the Committee staff if you object to having the photos and videos taken. Can all witnesses please confirm that you have been provided with the Committee's terms of reference and information about the standing orders that relate to the examination of witnesses?

JACOB WALSH: Confirmed.

CLARE VAN DOORN: Yes.

The CHAIR: Would anyone like to make a short opening statement before we begin with questions? I'll throw to St Vincent de Paul first.

CLARE VAN DOORN: I would like to thank you for the opportunity to appear before the Committee today. The St Vincent de Paul Society is a member-led organisation that has been serving the communities across New South Wales for over 140 years. As the Committee will know, our organisation's work is statewide, encompassing a range of social services delivered by a blend of professional staff and local members and volunteers. In the context of disaster, our role is to serve the members of the community who are struggling through disadvantage, and it is tested. As we have seen, disaster both deepens disadvantage for some whilst greatly expanding the number of people experiencing disadvantage, many for the first time.

The St Vincent de Paul Society works closely with the Government to meet these challenges during and after disaster events and, increasingly, in preparation for such events. We very much welcome the approach that has been taken by the RA [Reconstruction Authority] to facilitating and resourcing disaster response in New South Wales.

In particular, we will make the following points to support our submission. We support and encourage further elaboration of the place-based approach that the RA is taking as they continue to develop the State's capacity to prepare, respond and recover from disaster. From the perspective of a local volunteer and member-based organisation like the Society, a particularly important part of the State Disaster Mitigation Plan that must continue to attract focus and resourcing is vulnerability reduction—particularly community awareness and preparedness, and social infrastructure and cohesion. We are grateful for the support of the RA to contribute to this area via the Recovery Services Capacity Grants, with which we will recruit volunteers and provide training in 11 LGAs [Local Government Areas]. The project we have just begun will develop training resources and a volunteer registration system and deliver online and in-person volunteer training designed to build capacity, confidence and readiness of informal volunteers. We hope this approach will be seen as a very effective investment and will encourage further support of community-led preparedness and activities in future.

In response activities, the Society also welcomes the willingness of the RA to allow flexibility and support delivery based on previous experience. For example, the Authority supported the Society to pivot to direct small grants to households for groceries and essentials, building on learning from our experience in earlier disaster events. This allows greater dignity and ease of access to support for people we assisted. More broadly, the experience speaks to the importance of resolving a tension between bureaucratic norms, such as those that guide eligibility requirements and data collection, and the need to provide sensitive and impactful relief, which is trauma informed and builds community trust. For example, the vulnerable cohorts that we work with are still too often disadvantaged in their capacity to access government grant support because relatively onerous evidence requirements are harder for this cohort to meet.

The Society remains concerned that those people we assist between disasters, who are experiencing severe social and economic inequity, are further disadvantaged in the context of disaster. We are keen to continue working with RA to find ways to ensure that this risk is mitigated. Finding ways to allow flexibility in evidentiary requirements for assistance for people who are experiencing precarious living conditions is one area where progress might be made. Finally, the Society is keen to remind the Committee that, in our experience, a disproportionate burden of disaster falls on those living with fewer resources. Very often this includes Aboriginal

and Torres Strait Islander people, for whom a tailored response—delivered with and through ACCOs [Aboriginal Community-Controlled Organisations]—is required. For example, during the Mid North Coast floods this year, the RA set up recovery assistance points run by the Aboriginal controlled community organisations, which, in our experience, worked very well.

JACOB WALSH: Thank you, Chair and Committee members. I begin by also acknowledging the traditional owners of the lands on which we meet and pay respects to Elders past and present. My name is Jacob Walsh. As the New South Wales Director for Australian Red Cross, I oversee our emergency services operations, often working closely with community and government partners, including the NSW Reconstruction Authority. In 2025, Australian Red Cross staff and volunteers were active in 33 emergency operations nationally, supporting over 200,000 people. This includes the 124 days our team supported New South Wales communities during Tropical Cyclone Alfred and the Mid North Coast floods.

I began as the New South Wales director during the Mid North Coast floods. I saw firsthand local government staff, community organisations and many residents clearly experiencing the cumulative toll of disasters in recent years. I heard the intricacies of ensuring primary producers were able to access recovery supports. Asking for help does not come naturally to that cohort, especially when their attention is understandably focused on repairing fences, securing stock and restoring their properties. I visited recovery hubs and outreach points, including the Kempsey Recovery Centre, which was coordinated by a local Reconstruction Authority manager who knew her community and its needs. That centre was a strong example of effective local leadership and agencies working together with clear purpose and coordination. Overall, communication from the Reconstruction Authority has been strong. We were generally briefed in advance about workforce requirements and timelines for opening recovery hubs, which meant we were able to avoid unnecessary delays in deploying our staff. Of course there have been some challenges, including around the awareness for communities of when recovery centres were opening.

Red Cross's submission to this inquiry reflects both the strengths and the areas for improvement we feel would make a real difference. We advocate for community-led models that enhance social capital. We note opportunities to strengthen inclusion and accessibility. We see a need for enhanced data sharing and coordination, and sustainable funding and better cost recovery. We also advocate for engagement of partners in planning and communication processes earlier and, finally, for greater emphasis on psychosocial support and wellbeing. We value the Reconstruction Authority as a responsive and constructive partner in the work we do in community. Our evidence is offered to strengthen what works to ensure responses are faster, fairer and more sustainable. In every disaster people tell us the same three things they need most: money, basics like food and shelter, and someone to talk to. The first two are usually visible and funded. Human connection and psychosocial support are harder to quantify but equally critical. Thank you for the opportunity for us to be here today.

The CHAIR: Thank you, both, for those opening statements and your submissions. I wanted to ask a question, and I don't want you to give me details about your personal financials. You both made reference to the ability to recover costs and be paid by the RA for the work and the expenses that you incur during your work in these events. Can you please explain to the Committee how the funding works at the moment when you're called upon or we need your assistance during a disaster event? I might go to Red Cross first and then come to St Vincent de Paul to answer that question.

JACOB WALSH: Australian Red Cross has a memorandum of understanding with the Reconstruction Authority as a community partner. Under that MOU [Memorandum of Understanding], we are able to recover costs of deploying volunteers into the field, so that is travel, accommodation, meal allowance if they're travelling interstate and any incidental costs like taxis. That's the limit to which we're able to recover costs under our current arrangements. We know that it takes a lot of work to deploy volunteers to the field. We have incident management teams who are booking flights, arranging logistics, and doing that support and mentoring of volunteers in the field. All of those costs are not recoverable under the current arrangements. We do note, though, that the Reconstruction Authority has recently funded community partners, and Red Cross is one of them, under the Recovery Services Capacity Grants, and what that grant will do is allow us to recruit and train volunteers ahead of time. That's fantastic progress and something that came out of the 2022 flood inquiry. But for us as an organisation, we strongly advocate for all costs relating to deploying and supporting people in the field being something that is funded into the future.

The CHAIR: St Vincent de Paul?

JOY KYRIACOU: I'm the Director of Programs at St Vincent de Paul with coverage of this area, working very closely with Clare. We don't have an MOU with the Reconstruction Authority. We are hoping to work towards that and begin for that to happen. However, we have for about the past 18 months worked in a very similar way to the way in which the Red Cross has outlined. All of the exact same elements apply so that we are able to

recover funding for the volunteers who are working in the recovery centres or some of the overtime hours for our staff who are undertaking that work and for some of the direct support that we are giving to people through the recovery centres as well.

Ms LIZA BUTLER: Thank you, everyone for joining us today, and I'm sorry I couldn't be there in person. I'd really like to understand your organisations' experiences of dealing directly with the Reconstruction Authority, especially following the east coast floods earlier this year. Have you noticed any changes or improvements on how the Authority has responded to a natural disaster? Are there any further improvements we might make? Mr Walsh, if you want to start, that would be great.

JACOB WALSH: Absolutely. Our observations of working with the Reconstruction Authority across a number of disasters has been continuous improvement, so they are very receptive to seeking feedback and wanting to have that continuous improvement approach to how they run their operations. We have observed a great willingness from the Reconstruction Authority to facilitate cooperation across organisations and community partners. An example on the Mid North Coast is they facilitated a partnership with community partners and GIVIT to make sure people were able to access GIVIT financial assistance vouchers. Overall, we absolutely feel that the recovery hubs and recovery assistance points are operating well. They are often operated by local Reconstruction Authority staff who have local connections, know their local communities and are able to support community partners to have a good presence. We believe they generally work well. As I mentioned in my opening statement, the Reconstruction Authority has improved in regards to their pre-planning so, as an organisation, we're getting timely advice about where they would like Red Cross volunteers and staff to be. We're getting that in a timely manner, which allows us to make sure we're able to deploy and meet those requests for assistance.

I also mentioned the Recovery Service Capacity Grant, which is a great investment in community partner organisations to be able to build and sustain volunteer capacity. In terms of areas for improvements, one of the things we recommended in our submission was how does the Reconstruction Authority improve the use of data and information to really identify pockets of community who are not being supported in recovery centres? One of the ones we advocated for in the Mid North Coast response was people in the agricultural sector. We knew that farmers—and we were hearing from our engagement with community that farmers were, in particular, not leaving the property to go into recovery assistance points. So how do we use data insights to identify where people are applying, who's accessing support, and, most importantly, who isn't accessing support so we can tailor responses? One of the recommendations for us from Red Cross is how do we better use community outreach? Rather than expecting people to go into hubs and centres, how do we also go and meet people where it is most appropriate for them?

One other piece that I'll talk to is about information sharing. As someone who presents at a recovery hub or a recovery assistance point, you speak to Service NSW to apply for a grant. You go to the next table and you speak to Services Australia. You go to the next table and you speak to community partner organisations. From a person who has been through a disaster, you're having to tell your story multiple times. I know it's not necessarily the Reconstruction Authority's remit to control that, but how do we, as community partners and government, advocate for a whole-of-government, whole of different State, Territory and Federal government information sharing to improve that experience for people who have been through a disaster? That is something that we recommend.

Ms LIZA BUTLER: Ms Kyriacou or Ms Van Doorn, do you have anything to add?

JOY KYRIACOU: I do, if you don't mind me jumping in, Clare. Is that all right?

CLARE VAN DOORN: Sure.

JOY KYRIACOU: I would agree with everything that has just been said. Very similar experience here at St Vincent de Paul. Something that I would add to that is that the Reconstruction Authority, in a very positive way, has worked with St Vincent de Paul and allowed for us to be flexible as well. If can we start with the blackouts in Broken Hill in the Central West region and then move forward in time. St Vincent de Paul was brought on board at that time because we have systems to allow us to get small amounts of money—for example, for groceries or for medical supplies—out to people very quickly. We can do that and we can turn that around in about 48 hours so that we have that happening post a disaster. We were able to do that working with the Reconstruction Authority in Broken Hill.

But something that works in a small community doesn't necessarily work in a big community, right? We delivered a very similar model to what we delivered in Broken Hill, in terms of grocery vouchers post ex-Cyclone Alfred. What St Vincent De Paul was there to do really was to catch the people in the gap between being able to access the government grant—that might have taken a little bit longer to come online—and their immediate needs right now, so that we could at the recovery centre immediately hand to people a voucher for groceries or for other

needs, which was an excellent thing to be able to do. We found, however, that didn't necessarily cover all of the things that people needed. It meant that we were able to speak to the Reconstruction Authority, speak to the speed of our systems.

Following the Mid North Coast floods, we changed that into a small direct grant into people's bank accounts so that they had a lot more flexibility with the things they needed; we helped a much larger amount of people. From our experience at St Vincent de Paul, that was a much smoother process. People couldn't lose the physical thing that we were giving to them—which was a voucher for groceries—and it injected some money straightaway into the community. Our experience is that the Reconstruction Authority has been very willing to listen and learn with us as we modify that really immediate response in the reconstruction phase or the recovery phase in communities, which has been absolutely excellent.

Apart from that, in terms of learning, we would also echo, I think, that greater flexibility would be useful, even further than what they have delivered at the moment. The flexibility to move access to recovery to people in community or in place would be very useful. We saw a lot of that in the Mid North Coast floods, where the Reconstruction Authority did set up recovery access points at a range of Aboriginal Community-Controlled Organisations. St Vincent de Paul was invited into those; we thought that was brilliant. It would have been good to see more of that earlier on. We had a situation up in Tweed where a lot of the people at our homeless and crisis hub needed support. They had to go to the recovery access point, which meant that there was quite a large amount of people from our hub going to that point. It might have been good to support those people there at that point at the time, which we could have potentially done. I believe the Reconstruction Authority wants to be more flexible; especially from talking to them, we can see that as we've moved forward through time. It's been quite a positive experience.

Ms TAMARA SMITH: Thanks so much to both organisations. I've seen firsthand the work that you do, and it's amazing. For me what you're identifying is what the underlying causes of vulnerability are. I think it's quite hard, for anyone who hasn't seen that, to understand that whatever inequities are there just get exacerbated. I wonder if you could briefly explain, because I'm a flowchart person. Jacob was saying that there's no mechanism for Red Cross to inform, at the initial design phase, of grants and community-led recovery. Then, Clare and Joy, you talked about the burden of evidence that's required for those grants, but also suggested that it's getting more erudite with the most recent. It's very pleasing to think—well, it's not pleasing that there are more disasters—that there's a more erudite rollout. In terms of a flowchart, in practicality, what would it look like to get involved? Would that be during peacetime, when there are no disasters?

CLARE VAN DOORN: That is a great question. For us, when we look at disaster, more often than not—and this is a term used—we're building the plane and flying the plane at the same time, particularly in any disaster that we have in play. In pre-disaster, it's really important that we have that MOU with RA, so at least we can be having the discussions up-front. Every disaster is slightly different, but now we've got to the point, after working with communities who are going through the trauma of disaster in 2025, that we have got so much better at what we do. We have to tweak those little communication lines around what it looks like, coming together and working on our MOU to say, "This is the expectation. This is what we can and can't do."

There is definitely quality improvement going on in the services, having lived and breathed the Taree recovery centre and the engagement that we had. Having that turnaround, as Joy said, we were able to stand up within 48 hours. We need that very timely response from RA with expectations of what we are going to deliver. And it needs to be very disaster centred, if that's a word we can put in play, because each is slightly different in our broadly spread and localised communities. It was very onerous for some of our really disadvantaged cohort to be delivering documents or evidence, particularly in vulnerable communities. Taree is one. It is already a vulnerable community, even without disaster. So let's make that so much better. It's the response time that we are able to—we can do it, but we need the support to make sure that we've got the lines of communication. Also, what is it that we're delivering in play? So definitely so much improvement, but there's always room for more.

JOY KYRIACOU: Would you mind if I give an example, Clare?

CLARE VAN DOORN: Sure.

JOY KYRIACOU: One of the challenges that people who are really vulnerable face—for example, the homeless community—is, of course, it makes sense that for government grants and other higher amounts of money grants—say, a grant that might be for \$900 or more—you have to provide an address and have some evidence that you live at that address. But if you're living in a tent by a river because you're homeless, then you won't necessarily have evidence of your address. Or, if you do, it might not actually be where you live. It might be where you used to live some time ago. For people who—and I saw them personally, and Clare would have seen many more—might have had their whole home, their tent, wash away, sometimes they wouldn't qualify for government assistance, even though they are the most vulnerable people. While I'm not sitting here with an answer, I think it

would be very useful for us to work together to make sure that all the support can be wrapped around the most vulnerable, as opposed to having a situation where organisations like St Vincent de Paul can help that cohort, but don't necessarily ensure that the highest levels of support are also going to the most vulnerable people.

JACOB WALSH: I agree with the points shared. For Australian Red Cross—and building on the points that were just shared—it's also the importance of leveraging local community organisations. These are the people who interact with vulnerable cohorts year-round ahead of disaster time. So how does the Reconstruction Authority support those community organisations to be able to support the recovery efforts and responses? One of the things we also know is that it requires those organisations to have the funding mechanisms to allow them to respond. It's about them having the capacity, so what are the skills and additional training to be able to support people in a disaster context, which is important.

It's also surge capacity. In some local community organisations—and Red Cross is one of them who has very local response teams—capacity runs out quickly. People are either impacted themselves or they become fatigued after prolonged periods of response, so what is that formal surge capacity and support that could be in play? One of the things we were doing in the Mid North Coast response was providing some of that capacity support to local community organisations. Using our knowledge around psychosocial support and recovery principles, we were doing some support and training for local community organisations to help build their capacity. That's one of the things we are really passionate about and will continue to do on the ground.

The other point to this is about social capital, I feel. How do we work with communities to build social capital and sustain social capital ahead of disasters occurring? That's challenging because there's repeated disasters. I think for us, what's important to recognise is it's something that needs to be always on. That preparedness and resilience work is something that needs to be sustained ongoing to build social capital in communities so that we can have strong bonds—that people are prepared, that people know how to respond. Also through that work, Reconstruction Authority and other government agencies and partners are able to build connections with those local communities so that there's a greater flow of information and knowledge.

The Hon. STEPHEN LAWRENCE: Thanks to all the witnesses for coming along and the work you do in the community. I've just got a single question, maybe starting with St Vincent de Paul and then going over to Red Cross. I wonder if you could talk us through how your organisation activates in response to a disaster.

JOY KYRIACOU: Sure. We have a disaster response framework at St Vincent de Paul. When a disaster occurs, the first thing that we do is obviously look after our people and our properties, do what we can there. We don't get in and sandbag other people's homes. We really kick into action in the post-disaster phase. That's where, through our framework, we'll decide if it's basically a small, mid-size or large-scale disaster. We use a whole range of evidentiary points to make that distinction. Often it depends on what information there is available at the time, from government sources as well. We will work then with our volunteers locally on the ground, that structure of volunteers and the leadership. Unfortunately for Ms Van Doorn, it's normally been in her area, as the regional director for that area. Her and I will set up an initial call, make that assessment and then we will speak to the Reconstruction Authority, explain to them what our footprint is locally in that area—where we could work, what we're able to do based on the size of the disaster and our evidentiary points. We'll decide whether we're also going to launch a St Vincent de Paul public appeal.

We basically have a framework that gets all of our different arms firing to set up our backend systems and be ready to go in the Reconstruction Authority's recovery assistance points and recovery centres as quickly as possible. Then the way that we work is that Clare and her team will normally form the backbone, work out the rosters and so on, and our local people—our volunteers who, at St Vincent de Paul, we call members—will be the ones who are speaking to people from their local communities, doing those assessments and getting support out as quickly as possible, normally in the form of either small grants, grocery vouchers or other assistance based on what's needed in the local area as quickly as possible.

JACOB WALSH: From Australian Red Cross's perspective, we have 89 emergency services teams based across the country, comprised of 818 volunteers. To give some context, in the Mid North Coast we have 72 volunteers, and in the North Coast region we have 180. We draw on those local volunteers in the first instance and, as I mentioned before, once capacity starts to reduce, be it through fatigue or impact, we then draw on our nationwide network of volunteers. We have 2,500 emergency services-specific volunteers. In terms of our role, we typically start in the very early phase of a response. In addition to having an MOU with the Reconstruction Authority, we have an MOU with the Department of Communities and Justice [DCJ], who are responsible for establishing evacuation centres. Our volunteers will typically be on the ground in those evacuation centres providing psychosocial support to impacted community members as they arrive in those evacuation centres. As the response moves on, that's when the Reconstruction Authority MOU becomes active and we start to support the Reconstruction Authority in those recovery hubs and recovery assistance points.

What we also piloted in the Mid North Coast was some work alongside the SES [State Emergency Service]. As the SES was going out doing rapid damage assessments, we sent along our trained psychosocial support volunteers alongside the SES crews so the SES could focus on understanding the physical infrastructure damage, and our people were able to support the person who had been through that disaster event. That's something we piloted in the Mid North Coast, and we have good feedback. It's something that we are looking to progress and have further conversations with the SES about strengthening into the future. That's our role in a disaster context and our footprint. In terms of coordination, we stand up an incident management team, which is typically in Kent Street—our head office here in Sydney—where we have a hive of staff and volunteers who are responsible for identifying what volunteers we'll deploy; making sure that they have their travel, accommodation and all of the logistics support; and making sure that there's resources available in the field for people, but also then doing that ongoing support, training, supervision and debriefing once people come back from the field as well. That's our role in disasters.

Mr RICHIE WILLIAMSON: One of the key roles of reconstruction is community preparedness, so I'd be interested to know what role both organisations are playing on behalf of, or with, reconstruction, and is there more that you think both of your organisations can do together, collectively or individually, to help RA to make sure our communities are better prepared for what comes next?

JACOB WALSH: Absolutely. Preparedness is critically important and is something that we are very passionate about at Red Cross. We do a lot of work with local Reconstruction Authority teams on the ground and often working alongside them at community events and those recovery preparedness events that happen locally all year round. That typically looks like fair days or emergency service days where we sit alongside the Reconstruction Authority and other community partners to talk about preparedness. Our preparedness resourcing is for all hazards, so it's not specific to floods or fires. It's very much talking about an all-hazards approach and how we get people in the mindset of thinking about what they will do to respond physically, but also how would they prepare their mind—the mindset of what they will go through and the experience they will go through. That's some of the work we do.

In terms of opportunities for improvement, we know that disaster funding is very much geared towards that recovery phase. How do we get that balance right and the balance better in terms of investment in preparedness and resilience building? That's something that we advocate for and was part of our submission. How do we invest in building social capital of communities, which includes the preparedness work, but also it's about connection and resilience building? That's something we would advocate for: a greater balance of where the funding investment lies, so it's not all in the recovery space and not all in the heavy infrastructure investment which we typically see.

JOY KYRIACOU: From our perspective, every dollar spent on preparedness is one that you generally are going to save into the future—manyfold. St Vincent de Paul would always say we would love to see much more investment in preparedness. From our perspective, the work that's happening at the moment through the Recovery Services Capacity Grants program is excellent. We're really excited about the work that we will be doing in that space, and I understand that the Red Cross is working in that space as well. That is a really fantastic start. Of course, with greater investment we and the Reconstruction Authority and other organisations like the Australian Red Cross could do more together. The other thing that I would say is that the New South Wales Government, through RA, could think about playing a larger convening role in the space of preparedness.

That's not to say that there aren't many activities happening in this space generally but it [audio malfunction] to actually talk through preparedness activities and make quite an effort to do some planning together on how we could ensure that New South Wales is better prepared for natural disasters. From the perspective of St Vincent de Paul, our bread and butter is not disaster response. We are an organisation that has had to shift and move and learn as we go to undertake disaster response because we have such a large community footprint and we are able to do it and get support out to communities. However, the number of disasters that we are seeing—one upon another upon another—has meant that that shift has had to be very fast. There isn't always the space to stop and learn, to talk with other organisations like the Australian Red Cross, and really think about how we can do things better. We would love to see more convening of the sector, and of organisations big and small, with RA to have these discussions and invest in preparedness.

CLARE VAN DOORN: Can I add one little point to that as well? In times of disaster, it highlights that especially our small communities are so vulnerable and disadvantaged not in disaster times. That is more important for that convening of that conversation around how are they prepared, because it just opens up another view or a lens on what people are doing and how they're struggling so much in these communities that would never have capacity anyway. It is just as Joy said: Disaster after disaster has really just heightened the need of what we do all day every day.

The CHAIR: Thank you. Ms Higginson?

Ms SUE HIGGINSON: Thank you, all of you. I've just got a couple of quick ones. I'll put them in the one question. I am very curious to know about, when you are dealing with people, whether people are coming to you asking about the causes of the disaster. I know that we're dealing with the disaster, but we talk about how it's disaster after disaster after disaster, and obviously not the same communities impacted to the same degree, but for the north, for example. I'm curious as to what people are discussing in terms of that social psychological impact about the causes of disaster, what your experience is in terms of people's criticisms or otherwise of the Reconstruction Authority and whether there's anything we can learn about what you're hearing. I don't mind who goes first.

JACOB WALSH: I'm happy to start. Absolutely, people are experiencing cumulative disasters, and that has a toll on people's wellbeing and their general life satisfaction and the like. We don't necessarily get the question about what's causing the disasters. When people are seeing us in a recovery centre or an evacuation centre, they're there wanting their basic needs met. They're wanting access to shelter, they're wanting access to grant funding, and they're wanting access to psychosocial support and wellbeing supports. They're less about conceptually what's causing disaster. I think that's where they're at—they're presenting wanting their basic needs met. That would absolutely be the first point.

BRENDAN PEARCE: I might jump in, if that's okay. One thing I would point out in response to your question—and I think it neatly ties into the question that you asked, Mr Williamson—is that we're about to kick off quite a substantial series of works around disaster adaptation plans in New South Wales. I think there's a real piece around how do we entrench that human social side of reckoning, if I can use that word, in the conversations that are going to be taking place in communities often who have experienced those disasters quite regularly. Growing up as a Lismore local, I can see firsthand every time I return home the impact that even a blip or a rainy weekend can have on communities in the Northern Rivers.

I think the other thing is that we can also get to a stage where communities are almost tired of being asked for their experience and their feelings about it. In response to your question, I think what we can take out of the Mid North Coast activation and all of the activations that are in the terms of reference is probably more a stronger need to start to have those conversations with communities and go, "This is happening. This is what you need to be looking at from your personal perspective to be able to do it." It's one thing, quite rightly, to ensure physical access to your property, to ensure the lights are on and to ensure you have groceries, but this is the other part of keeping yourself in good stead, to be able to be resilient to those particular events as they happen as well. I would contest that's probably what we would put forward.

JACOB WALSH: And then, in terms of improvements from the Reconstruction Authority, some of that was what I mentioned in the opening statement around that information and data sharing. How do we work through the process so an applicant doesn't have to tell their story multiple times to different government agencies and community partners? That's not a great experience for someone who has been through a traumatic experience. We do hear on the ground that people just don't know where recovery assistance points are or recovery hubs are. I know the Reconstruction Authority do a huge amount of work in terms of public messaging and social media and the like.

It's about considering how we use data to understand what pockets of the community aren't accessing services, and that might be a signal for us to go to them to go, "Did you know we have a recovery assistance point?", or even the delivery of outreach going door to door to make sure people have support. But it also could trigger more of the recovery access points rather than the centralised hubs. How do we do outreach to different community halls or the like to do those small pop-ups? That's one of the things we would also recommend as something that we constantly hear—not knowing, despite there being a lot of public messaging out there.

JOY KYRIACOU: I don't have anything to add to that. I think it was all very well articulated. I don't know if, Clare, you have anything you'd want to add.

CLARE VAN DOORN: I definitely have no criticism or discussion about what caused it, but one of the key things—and it is on that outreach—is the different cohorts of people that we saw this time, particularly our primary producers, who never, in nine years of doing disasters, had that level of engagement. Their needs were so much greater than the other folk who were attending. In that discussion—and preparedness—is really the need to look at those cohorts. The level of psychological trauma and the capacity for them even to engage was highlighted in this disaster. We really do need to be considering, as we do after every disaster, what the learnings are. One of the key things was really engaging those communities who we never really see because there's always somebody else who needs it.

Mr ROY BUTLER: Thank you, everyone, for your submissions and for being with us today. In your opening statements, St Vincent talked about a place-based approach, and the Red Cross talked about community-led models. With all the experience you guys have had recovering from and responding to disasters, can you identify some examples—even just one of each—where that has worked particularly well and maybe an example where it hasn't worked particularly well? I'm happy for anyone to take that one.

JOY KYRIACOU: I was going to ask Clare if she would like to talk about one of the Aboriginal community-controlled ones.

CLARE VAN DOORN: It was really excellent for RA to have those place-based RAP [Recovery Assistance Point] sites for our people. We were fortunate enough to go to the Purfleet Aboriginal community and also to the Biripi and Dunghutti Elders. I was just trying to remember where our other one was. It was Kempsey and the Kinchela Boys hub. What made the difference was that we were going out to a community that may not necessarily access us through levels of trust, not having evidentiary base criteria for us to be able to support them. The level of community and connection and the fact that they were being supported and heard was really important for them. It worked well, and there was really fantastic engagement. The teams that were there from the Reconstruction Authority were localised, and it made a really big difference for that connectedness. That worked really well.

A site that didn't really work well—and I suppose we can put it in play—was in the Maitland area where we did stand up an RAP point. Unfortunately, it was literally too soon because people couldn't access it. It's that communication. They physically could not get in because they were still cut off. It's about considering the disaster, what the impact is and where the site is. But a great quality improvement and initiative is having those outreaches. It makes all the difference to the people engaging.

JACOB WALSH: One example that we can talk to around community or place-based approaches to resilience building and disaster preparedness is the work we've been delivering in the Northern Rivers, post the 2022 floods. We were fortunate to receive funding from the Federal Government, but it was administered through the Reconstruction Authority. They've been a partner in delivering for us, in the Northern Rivers, the Community-led Resilience Teams program. Through that initiative, we've worked across seven local government areas in the Northern Rivers. The concept of community-led resilience teams is about bringing together local communities, and it's hyper local. It might be a collection of local streets or a collection of properties adjacent to a community hall or other community infrastructure.

Through that program, what we've been able to do is support community to come together, to understand what the local disaster impacts are specific to their hyperlocal location, and to help them think through what they would do in the context of disasters. A lot of the communities we worked with in the Northern Rivers were in locations that either got cut off physically through flooding or had communications go down. What we were able to do ahead of disasters was think about what role they would play locally to respond. An example of that being successful was in the Cyclone Alfred response where one of the community resilience teams in Rockvale identified that communications go down and they get cut off, so what that community did ahead of time was establish a two-way radio communication tree. They were able to get some local seed funding and we supported them to have training in two-way radios and how to operate that.

They also then worked out a central coordination point where all of the UHF [ultra high frequency] network would go to, and they purchased a Starlink satellite network. What they were able to do in Cyclone Alfred—there was actually a vehicle trapped in flood waters and they couldn't use their telephone network because it was down, so they were able to use the radio tree to talk to the person who had the Starlink satellite who was able to call emergency services and get someone out there to help that rescue. It literally saved people's lives. For us, that local community resilience and capacity building is important. Hyperlocal communities know what the impacts are that are relevant to them, and then can develop responses to support them to mobilise in times of crisis. That's just one example of where we see strength in those community place-based approaches.

The Hon. SCOTT BARRETT: I'm going to direct my question to the Red Cross, but I dare say St Vincents might like to come in at the back of it, because in your submission you talk about the duplication and targeting services and that there could be improvements as far as efficiency. We don't talk about it much, but there is competition in the NGO [non-government organisation] sector where you are all chasing volunteers, chasing donations and chasing the slot on breakfast television. To do that, you need to do the sexiest sort of thing to get that attention. That can lead to other things getting missed. Have you put any thought to how government, through RA, can help facilitate that to make sure that the resources are being spread to where they need to be and not focused on what might be the most attractive?

JACOB WALSH: As a community recovery partner, we're one of many organisations that have an MOU with the Reconstruction Authority, and we're all contracted for different types of work. We play a role in

psychosocial support—that meet and greet and helping people as they present at recovery assistance points. Other organisations are funded for emergency relief or for the provision of material aid or financial counselling or spiritual support through the chaplaincy network. Reconstruction Authority has taken quite a good approach in terms of coordinating those community partners to make sure that we all know our role ahead of time and we all can execute and deliver in those recovery hubs and effectively not compete. I think there's an opportunity to further expand that to: How do we bring in local community organisations into that network and ecosystem? I think that's an area of opportunity for the Reconstruction Authority to think about how they continue to do that and bring in local community organisations in addition to broader community partners, which we are one of.

The CHAIR: Was St Vincents going to jump in on the back of that?

JOY KYRIACOU: No. I completely agree. I have nothing to add.

The Hon. CAMERON MURPHY: I have a question for Ms Kyriacou from St Vincent de Paul on an issue you raised earlier about the evidentiary requirements and the issue where it's often the most vulnerable people who have the most difficulty in providing evidence. Is there a solution to this problem? We want to make sure that people get the assistance that they need, but we also have a responsibility over managing public money. How do we balance that and what sort of suggestions do you have that might be able to strike that balance carefully and properly?

JOY KYRIACOU: That's a very good question. One of the things that I think that the Reconstruction Authority and government could look at, and it would require a bit more flexibility, would be to look at organisations—local, both small and large—that have really strong relationships that exist already with vulnerable communities. We've seen that already begin to happen, for example, with the recovery assistance points that were at Aboriginal Community-Controlled Organisations. Those organisations had the decision-making role of what other organisations and bits of support would come into that organisation and form the recovery assistance hub. That's a fantastic start. There may need to be some working through rules in terms of funding and so on, but the Reconstruction Authority could look at women's hubs for various communities. They could look at hubs where people who are experiencing homelessness already gather and think about the ways in which they could either establish a recovery assistance point or establish some specific support targeted at communities who are experiencing more extreme or different levels of vulnerability.

What I mean by that is levels of vulnerability that are different to "Right, I live in a home. I've lost my power for a long amount of time and I've lost the food in my fridge, and that's going to be quite expensive for me to replace. I might have some damage to my property, and therefore I've got all my evidence and I can go and apply for a government grant." I think it requires some flexible and different models of support that really think about the range of vulnerable communities that might be affected by a specific disaster and targeting some packages there. That's where I think we could [audio malfunction].

JACOB WALSH: I'd agree.

The CHAIR: I thank you all very much for appearing before the Committee today. You will each be provided with a copy of the transcript of today's proceedings for corrections. Following our hearings, the Committee may develop some supplementary questions that we would also like to send you. If we do that, we kindly ask you to try to turn those around in 14 days. Please speak to us if that's not possible for you because of your busy schedules. Thank you all once again.

(The witnesses withdrew.)

Ms CARA VARIAN, Chief Executive Officer, NSW Council of Social Service, affirmed and examined

Ms ELEANOR HARRIS, Senior Project Officer, NSW Council of Social Service, sworn and examined

Mr OMAR BENSAIDI, Senior Policy Officer, Homelessness NSW, affirmed and examined

The CHAIR: I welcome our second panel of witnesses. Please note the Committee staff will be taking photos and videos during the hearing. The photo and videos may be used for social media and public engagement purposes on the Legislative Assembly's social media pages, website and public communication materials. Please inform the Committee staff if you have any objections to your photos and videos being taken. Can all witnesses please confirm that you have been issued with the Committee's terms of reference and information about the standing orders that relate to the examination of witnesses?

OMAR BENSAIDI: Yes.

CARA VARIAN: Yes.

ELEANOR HARRIS: Yes.

The CHAIR: Would anybody like to make a short opening statement before we begin the questions?

OMAR BENSAIDI: Thank you, Chair and members. We appreciate the opportunity to be here today. Our submission shows that disaster recovery fails when people without homes or secure housing are considered as a mere afterthought. Through our submission, we're strongly urging the Reconstruction Authority to embed and hardwire homelessness understandings and protocols into every plan so that State disaster mitigation and local adaptation plans or triggers that open safe shelter are considered from the perspective of people experiencing homelessness. That also means to partner early, particularly with specialist homelessness services and those with lived experience, who know where people are and what works best for them. Recent severe weather events have demonstrated and revealed some very clear, avoidable gaps: planning that didn't include people who were street sleeping or sleeping rough, evacuation centres that were opened too late, recovery hubs that were centralised too far from where people were living, and stringent access rules such as ID requirements or housing and tenancy documents that effectively shut people out who are already vulnerable.

That particularly affected, as I mentioned, people who are vulnerable such as women, children, young people, First Nations communities, people from the LGBTQ+ community, and domestic and family violence victim-survivors, with documented incidents at shared centres. Our recommendation showed that the fixes are practical, possible and within the remit of the Reconstruction Authority, by co-designing plans with specialist homelessness services and those with lived experience; setting earlier and lower thresholds to trigger safe shelter, particularly for those who are experiencing street sleeping; pre-identifying inclusive venues for vulnerable communities; ensuring that responses are trauma-informed and culturally safe for communities; and resourcing local trusted organisations to carry timely messages through outreach channels that are already quite established with people who trust them and that actually reach those people. By doing this, we strongly believe that we can move people into safety earlier, we can reduce trauma and re-traumatisation, and we can speed up the potential for recovery.

CARA VARIAN: I start by acknowledging the traditional custodians of the land on which we meet today, the Gadigal, and pay my respects to their Elders. NCOSS represents the social service organisations who work in every community in New South Wales. We also amplify the voices of people living in poverty and the communities we serve. As social service organisations, we are integral parts of the social infrastructure that support people through crises, which include disasters. I want to acknowledge the commitment and significant improvements that have been made by the Reconstruction Authority that we have witnessed during the severe weather events of May 2025 and the preceding disasters.

I've been in this role for 18 months, and I have seen a change. But these experiences highlight a persistent and systemic gap, which is that disaster recovery is not yet, in our view, sufficiently community-led, people-centred or inclusive. We urge the Reconstruction Authority, through this Committee, to take further steps to address equity and vulnerability. Current processes, particularly access to recovery grants and temporary accommodation, still heavily disadvantage the most vulnerable. We also urge the Authority to adopt tailored, simplified protocols that recognise specific circumstances of people like carers, people with disability, older members of the community, the uninsured and, critically, those already experiencing homelessness.

We advocate for a transition from a reactive model to a proactive, locally resourced one through the provision of sustainable, flexible and long-term funding for essential local services to support preparedness and years of complex recovery work. Despite not being funded to work with the Reconstruction Authority, NCOSS is putting our efforts to show that we want to be true partners to build a more resilient New South Wales. So there

are lessons to be learnt, and we think there are structural policy changes that will lead to a more resilient New South Wales but embed the social service sector and the community at the heart of the Reconstruction Authority's mandate.

The CHAIR: Thank you. I will ask this first question to both of our witnesses. I'll start with NCOSS, because you mentioned specifically in your submission—I'll come to Homelessness, because I think you also mentioned it, in part, during your opening statement—about shared service data, and my alarm bells about privacy started going off. There are limitations to what we can share between government agencies, first of all, and then secondly, of course, what can be shared with not-for-profits like yourselves that do the work. Am I interpreting your submission correctly, when you talk about sharing service data, that you want to share some of this personal information? Should I be alarmed about privacy, or have I completely misread the situation?

CARA VARIAN: Data is very tricky. Of course you should have your alarm bells running hot. We would want to share service data in a way that respects privacy, and it's great that that would be one of the principles that we would adhere to. I think there are two levels of service data that we can be talking about sharing. One is community-level data. We have done a project at NCOSS where we have overlaid the geographic information of different communities with the socio-economic information about the communities, and then you can see the vulnerabilities of those communities. By being able to overlay, you can see the areas that need additional support to prepare for disasters, and additional support to respond to, and recover from, disasters. In some ways, all of that data is publicly available, but it's not easily integrated in a useful way so that people can make decisions.

When we did the project to bring that data together, we spoke to some of our emergency service colleagues and they were like, "Oh, we're doing something similar but we can't show you that." So it doesn't really make sense that we've got different groups of people that are all creating the same datasets that it could be useful for us to work together on but we do not share them. That's the beginning, and then the second one is how we support individual community members to not have to tell their story over and over again. We have a health system. We know that there are ways to put in place shared data across government agencies. It's not an easy process but I think it can also be done around disasters.

The CHAIR: Do you have any thoughts on what that might look like or how that might work?

CARA VARIAN: I'd have to work with the Government on that. We don't get access to it. It's something social services deal with in non-disaster environments. Ultimately, I think the New South Wales Government would like social service organisations to make great decisions, but that requires access to information. I don't think I can sensibly provide advice on that without knowing how it works at the moment.

The CHAIR: That's okay. Mr Bensaidi, obviously there are not-for-profits and agencies out there working with some of the clientele that you work with. The Government don't necessarily know those, and they don't necessarily trust the Government. How does the Reconstruction Authority go about its work making sure that no-one gets missed in the sweep of the net, at the same time as the Government doesn't necessarily know who those people are but the not-for-profit sector quite often does?

OMAR BENSAIDI: Absolutely. With regard to particularly our members of the specialist homelessness services, a lot of those relationships are established. A lot of those relationships are trusted. They're not new relationships. A lot of these services have been working with these people for years and have established that trust to a certain point where they are able to, and willing to, come forward probably more preferably to specialist homelessness services than directly to a government agency. There are already existing protocols and processes in place where SHS—specialist homelessness services—are sharing data with government agencies in ways that respect and maintain confidentiality—de-identified forms. I think the main rule behind this is around ensuring that confidentiality both sits at the heart of this while ensuring that we're not replicating data or getting people to retell their stories.

The CHAIR: Sorry, I note there is some sort of audio malfunction with the Webex broadcast. It might be Ms Butler's connection. Please, go ahead.

OMAR BENSAIDI: As I was saying, given that there are already established protocols and processes in place for not-for-profits and specialist homelessness services to share information and data with the Department of Communities and Justice, for example, means that there is already a pathway to doing that. As Ms Cara mentioned, we don't want to put vulnerable communities in a position where they are having to retell their stories. Where there is a will to be able to do that, there will be a way to maintain confidentiality while also balancing with the need to ensuring those stories are told accurately.

The CHAIR: I'm going to skip our Deputy Chair just for a moment; I think there are some things there we need to sort out. I will come across to you, Mr Murphy, and then work around the horseshoe and then go back on screen.

The Hon. CAMERON MURPHY: Thank you, Chair. I might just come back to an issue I asked in the earlier session, which was about how we balance the ability to get help to people quickly but also make sure we're spending public money appropriately, and the issue about evidentiary requirements, where we're often asking the most vulnerable people, who might have difficulty already applying and producing evidence for a particular grant or assistance. I just wondered whether utilising those existing networks that are already established is the best way to go about doing that, and what suggestions you might have about how we can improve that process to make sure we get assistance quickly to the people who need it most. We will start with Homelessness.

OMAR BENSAIDI: Sure. I heard the question and answer from the previous panel that you asked. As Ms Kyriacou mentioned, there's established relationships and there's trusted relationships with not-for-profits and non-government organisations already there. I think we need to go a step beyond just consulting with those organisations and try to co-design paths forward that really deeply embed the experience and expertise of specialist homelessness services along with the lived experience of those people in the communities. A lot of those pathways and relationships are established. They're rigorous, and I think that the Reconstruction Authority can be able to rely on those pathways safely to come up with creative ways that are co-designed and led by those communities that are based in regions affected.

The Hon. CAMERON MURPHY: Would that be, for example, one of your member organisations verifying the bona fides of somebody without requiring production of documents?

OMAR BENSAIDI: I definitely believe that could be a possibility. I strongly believe that through the co-design methodology, getting the right people in the room to discuss these and to come up with creative ideas to develop potential strategies, like you just mentioned, is very reasonable and practical. I think the tools are already there. The space is there for that to happen. There needs to be a will to execute on that co-design approach.

ELEANOR HARRIS: May I add something? In terms of going back to what Cara mentioned about the data, I think actually the de-identified data from ABS also has the data. It's mentioned in the Colvin review, a risk profile, so finding out where the highest risks are. Overlaying that with the socio-economic disadvantage data can help to narrow down those areas that need to be focused on. That can help with the evidentiary requirements when people are then applying for grants. You can look at, well, is this area a high impact area? That's the kind of work that can be done as part of the adaptation planning process as well, and then can be used in recovery to find out where the highest need is or know where the highest need is, rather than having to quickly find out at the time.

Also, in terms of those relationships between Reconstruction Authority and local services, we saw some great examples in various different disasters from services who were funded to provide recovery support services. That's usually case management and quite specific, but when there has been proceeding disasters after the one that they were funded for, they were able to reach out to the communities that they knew, people who were homeless or people who were a bit uncertain about connecting with the Government, and tell them about what government support was available. So being funded as a service through RA to provide recovery support is a bridge between government and those communities that may be a bit reluctant to engage with government. Broadening out that approach—RSS [Recovery Support Services] is fairly restrictive at the moment and prescribed in the way it's delivered, but perhaps looking at those examples that worked well and building on those is a way to bridge some of those gaps between government and community.

The Hon. SCOTT BARRETT: I might also revisit some of my questions from the last session—which I'm glad you were here for—about that competitiveness in this space, which, in a way, is dominated by a couple of big NGOs. How do your member organisations deal with that when you're competing for the same grant funding and the same attention? The second part of that question is how do we also manage—in the wake of a disaster we often see these pop-up organisations that might just be something that comes up on Facebook and all of a sudden becomes a lead organisation. So there are two parts there. I'm conscious that we don't have a heap of time. I guess you can lean on whatever you feel strongest responding to.

CARA VARIAN: I guess my first point around the competitiveness is it's a real tension within the sector. It's also a tension for the Government to deal with because there are those established relationships with the smaller organisations, but you need to get things out quickly. There is a model with international development that is used by DFAT [Department of Foreign Affairs and Trade] a lot, which is that, as part of the contracting to bigger organisations, they need to show that they have relationships with smaller organisations or on-the-ground organisations. I don't think that is used within the reconstruction area, and I would think that that's a useful consideration for us to think about in the future. The second part of your question, I can't remember.

The Hon. SCOTT BARRETT: I'm conscious of time. Let's just stick to that first part. There are lots of others to get to.

OMAR BENSAIDI: I can just answer, carrying on what Ms Cara mentioned about the competition point. A lot of our members are trying to address a significant problem, which is homelessness, with a very small pool of resources. The scarcity of resources is always going to lead to and breed a sense of competition, but it's about balancing the ability for smaller, more localised community organisations that have the agility and responsiveness while also balancing the need for larger, more resourced organisations to support those organisations. I don't necessarily feel that we need to drive competition further and drive that wedge further, but it's about bringing both of those organisations to the table to recognise what they can provide to address the need in those communities.

Mr ROY BUTLER: Thank you very much for your time here today. A little bit similar to Mr Murphy's question—in terms of the timeliness of grants, obviously, as people's capacity is diminished after a disaster, getting that money to people becomes more and more important. Have you got any out-of-the-box ideas about how we could get that funding out to people in a way that didn't create a risk for public value, using public funds, more quickly?

CARA VARIAN: I think that that partnership between the bigger organisations and the smaller organisations is fundamental to ensuring that the grant money that we get to the most vulnerable people actually arrives there. I also think that there is a risk for community recovery if we don't get that money out quickly, and that ends up costing the Government more money to try and repair things after they've been damaged or people have been struggling for longer. I would urge the New South Wales Government and the Federal Government to take a risk-based approach to that money. Getting money out, there will be some breakage, or sometimes people will get money that they may not be entitled to. But, largely, in these situations we see that people are doing their best, and I think that there are even bigger risks that we don't get the money out than making sure that there's a couple of people who got money that they shouldn't have.

ELEANOR HARRIS: May I just add, also, I think the disaster adaptation planning process that Reconstruction Authority is undertaking is a good opportunity to build connections, both with community organisations and community as well, to better understand those networks and connections and different types of communities. I know that the first pass of the disaster adaptation planning is pretty broad and a bit time-prescribed, but as they get a bit deeper into that process, looking at each particular community, looking at those connections, looking at the services in the area and how they're connected is an opportunity to make sure funds get out to the people who need it and in the time they need it. Not everybody feels they need funding straightaway; they think, "I've got the resources," then a bit later down the track they think, "Actually, no, I do need some support." Sometimes up-front is really important, but thinking about the recovery in the long term as well is important.

OMAR BENSAIDI: I'll add to that as well. As Ms Cara mentioned, of course providing the funding to the larger organisations to divvy it up to the small organisations is one approach, but I don't think it should be the be-all and end-all. I think there are various funding opportunities and models that can be able to both support larger and smaller organisations. I think another point that is connected to that is also the reliance on not-for-profits to respond in these disasters is heavily premised on government funding. I do believe there's significant, massive opportunity with bringing the for-profit sector—businesses, corporates involved—into funding organisations and local communities to do the work. I know that many local businesses would be more than happy and willing to be able to support that, so I don't think that we should strictly look at not-for-profit funding as the only model, as well, to respond to disasters.

Ms SUE HIGGINSON: At the beginning, in your opening statement you mentioned how we're getting better and there's a notable difference in the way the Reconstruction Authority is operating. But you did mention—and I'm not going to get it exact, but it did strike me when you said that we're still not really hitting that point where we are community-led and people-centred. Do you have any quick, rough, cheat, fast ways of things that your incredible organisations have thought of about how we—is there any low-hanging fruit in terms of what we can be doing to achieve these things in a much more honest, earnest, realistic way? I say this because I know these are such important notions that have been developed—I'm from Lismore—particularly what we learnt from the 2022—and obviously after the 2019 fires. I keep hearing it too but I just know we're not quite there and we're not quite hitting it.

CARA VARIAN: My view is that we are most progressed in the Lismore area, because those communities were forced to do that. We see great partnerships between the disaster preparedness and recovery "uniforms" versus the community organisations. What I would like to see is that progress being built upon in Lismore, but also allowing us to learn those lessons from that and apply them to other regions who aren't as progressed. The two things that spring to mind is the use of something called PCEP—person-centred emergency preparedness—which is often used by community service organisations to help individuals and community groups prepare for disasters. That enables all of the relationships to be built and for people to think about what those special things are that individuals might need, whether that's an esky with some medication in it so that they can make sure they're healthy while they're being evacuated, or knowing we've got a group of people that don't have mobile

phones in a particular area and it requires the council and all of the uniformed people to be working with community services. That process of PCEP, if we could embed that across the whole country, would be excellent for everyone. The second one is those council-led—

ELEANOR HARRIS: May I take over?

CARA VARIAN: Yes, go.

ELEANOR HARRIS: Community resilience networks—they're funded from recovery funding, unfortunately. You can work on resilience while you're doing recovery, and then the funding ends and you have to start the whole process again when there's another disaster. If we could have something like the community resilience networks that were our community organisations, community groups, local government and RA coming together to talk about resilience needs, but if it could be ongoing and looking at the broader wellbeing needs of that particular community. Yes, it's disasters, but also it's other wellbeing needs, so it's taking into account the people that are experiencing poverty and disadvantage. It's taking into account older people. You're thinking about and building on that conversation over time rather than that stop-start that occurs as a result of the disaster recovery funding; that's very stop-start.

CARA VARIAN: Disaster recovery funds at the moment are entirely focused on infrastructure. It means that the work that community service organisations could do becomes incredibly hard to fit into that reporting and application process. NCSS has gone through that process and it has been incredibly hard and very drawn out. Knowing that preparedness is so important, we put money into infrastructure. We need to do the same in communities.

OMAR BENSAIDI: Related to both the PCEP and the community resilience networks, I believe that strongly embedding a trauma-informed framework into strategies and local action plans is critical. Practically, that could mean, for example, having social workers or mental health nurses set up at safety centres as well. Having a trauma-informed approach will significantly improve the capacity for recovery and really embed resilience to a further extent. We know that these severe weather events are extremely traumatic, but a lot of these communities, especially people experiencing homelessness, are already experiencing traumas of homelessness before these severe weather events happen. These severe weather events only further the trauma and re-traumatisation. Having a trauma-informed and -led approach can really help to mitigate potential risk in those areas.

We heard stories, for example, of domestic and family violence victim-survivors who were being placed in centres with their perpetrators and with their abusers. Very simply, embedding a social worker in a space like that could mitigate the potential risks that come out of that. Secondly, to the point around the disaster recovery fund, definitely a lot of that is geared towards that bricks and mortar funding. I think it's really important, again, from a trauma-informed lens, to recognise that people are a key part of infrastructure and invest in people so that we can ensure that recovery is possible and that risk is mitigated to a significant extent.

Ms LIZA BUTLER: I missed the opening statements and some of the questions but, if it hasn't already been asked, you've talked about the communication when there is a disaster for some people who don't have access to mobile phones or computers because a lot of it is digital. What would you propose we do differently?

OMAR BENSAIDI: I think we heard from the previous panel some creative ways around using Starlink to communicate or having two-way radios. I think those examples are keen examples of what community-led approaches and co-design solutions look like. Again, it's about relying on trusted relationships through our members, specifically our specialist homelessness services who have established communication channels that are able to reach particularly people who are sleeping rough in the most remote of places, because they know where they are and they know what works best for them. Again, as I mentioned earlier, the co-design approach can lead to more creative solutions around establishing communication channels that don't strictly rely on digital forms and are able to expand the potential for communication in a way that is safer and more encompassing for people who are further out, particularly from those safety centres.

ELEANOR HARRIS: Surge funding for local community services. A lot of people who don't have phones or don't have a lot of data to be doing applications—or don't understand the application process because it's so complicated—will go to their local neighbourhood centre or the local service where they usually get support, and they will help them work through the application process. Often those services have to use their existing funding or apply for recovery support service funding, which takes a while. There's nothing to cover the extra work that they're doing, helping people who need help. Some surge funding as part of their core contracts can be really helpful. That has been done a couple of times in the past, and it has worked quite well. Keep in mind that that's a connection point for people who have those communication issues, and support those local services better.

Ms TAMARA SMITH: It has been very comprehensive. I have nothing to ask, but just want to thank both organisations for all the things that you do. It has reaffirmed everything that I've been thinking.

Ms SUE HIGGINSON: This is to help us in terms of our oversight of the Reconstruction Authority. In terms of your dealings with other organisations and individuals in the community, are you hearing criticisms about the Reconstruction Authority that you could constructively convey to us, to assist the Authority in understanding where people are up to? I know we were starting from a very low base before the Reconstruction Authority came online. I remember that very well in terms of previous iterations. Given the notion of, "It's the Government. They can't help us," and that kind of thing, is there anything you can help us with to help the Reconstruction Authority?

OMAR BENSAIDI: One point that we've heard from many of our members is the lack of, or the potential failures around, consultation as an approach, first and foremost. A lot of our members strongly recommended that there be a co-design element in disaster management and local adaptation plans. That means not starting with a conclusion but coming in with a blank slate and trying to figure out, with communities and local members, where to from here. I was in Lismore the week before last, and I heard some amazing and creative ideas from many people that would not have come to mind for myself if I was sitting in my office with my colleagues. I heard solutions and ideas that are a lot more embedded and reflective of community needs and resources. Ultimately, leading with a co-design approach can go much further than simply beginning with the consultation type of process.

CARA VARIAN: Despite genuine improvements with coordination and communication with community services, we're still hearing that there are local organisations that end up being out of pocket because there are members of the community that either don't trust the people who are in those new recovery centres or they just physically can't get there because they don't have a car or they have mental health issues. Better connections between those small local organisations and the recovery process would be something that would be very useful. I can't really say enough times how important preparedness is. I've been in rooms with the uniformed people and I'll say, "We need to work together more." That's definitely true. They say, "If you can just get the communities to do what we tell them, that would be heaps better." We probably need to have a conversation about that when we can explain why we're asking those things of them.

Prevention is better than cure in everything, including this. Engaging in community services earlier is my biggest message. Another thing is that I can hear the people talking about how important it is to accommodate the needs of people with disability or people with homelessness. At those coordination meetings, they will say that out loud. Then, when I say, "What are the actions that you're taking to accommodate people with disability or homelessness?" they say, "I'm sure someone else is in charge of that." Awareness is growing; taking the right actions at the right times is still not quite there.

The CHAIR: I thank you all for appearing before the Committee today. You will each be provided with a copy of the transcript of today's proceedings for corrections. The Committee staff may also email you some supplementary questions that we as a Committee develop following the hearings. We kindly ask that you return those within 14 days, if that's possible. Please talk to us if it's not possible because of your workloads.

(The witnesses withdrew.)

(Short adjournment)

Ms SALLY BRYANT, Manager, Disaster Response Legal Service, Legal Aid NSW, before the Committee via videoconference, affirmed and examined

Ms ELIZABETH LEHMANN, Senior Outreach Solicitor, Disaster Response Legal Service, Legal Aid NSW, before the Committee via videoconference, affirmed and examined

The CHAIR: Our next two witnesses are appearing online. Please note that Committee staff will be taking photos and videos during the hearing that we may use for our social media. If you are not happy with that, please let us know and that will be no problem at all. Can you please confirm that you have been issued with the terms of reference and information about the standing orders that relate to the examination of witnesses.

SALLY BRYANT: Yes, I can confirm.

The CHAIR: Would one of you like to make a short opening statement?

SALLY BRYANT: I will, thank you very much. I'd like to begin by thanking you all for the opportunity to speak to the Committee today. I'm the manager of the Disaster Response Legal Service at Legal Aid NSW, and I'm here with my colleague Elizabeth Lehmann, a senior solicitor in the team. We're tuning in today from glorious Gumbaynggirr country on the Mid North Coast, where I am lucky to work and live. Liz lives and works on Bundjalung country in the Northern Rivers. I'd like to begin by acknowledging the traditional owners of these beautiful lands and pay my respects to their Elders past and present, and any First Nations people here today.

The Disaster Response Legal Service at Legal Aid NSW is a statewide specialist team that delivers a service response for the full life cycle of disasters, from preparation and mitigation to rapid crisis response and post-disaster support for individuals and communities. This includes ongoing casework, representation and strategic advocacy. We specialise in legal issues that arise following disasters, such as insurance entitlements and disputes; housing and tenancy issues; access to disaster grants; financial hardship; credit, debt and fines; workplace rights; and issues arising from domestic and family violence. In our experience, legal problems following disasters tend to cluster, so it's very rare that the client will come to see us with just one legal issue, and those legal issues often interrelate.

Since the 2019-2020 bushfires, the State has seen concurrent and compounding disasters. Our team has responded to over 10 large-scale disasters since the fires, providing over 13,000 services to over 7,500 people across 119 LGAs. Our service model ensures that we reach people where they need us most. That predominantly involves face-to-face services at recovery centres and recovery assistance points established by the NSW Reconstruction Authority. We also have a 1800 telephone line for dedicated legal advice via telephone, and we do community legal education. We also coordinate the legal assistance sector response to disasters. We've worked in close partnership with the NSW RA since its inception in response to many disasters, both large scale and localised.

We've worked at RAPs and recovery centres in the aftermath of the catastrophic floods in the Central West in 2022; the Illawarra, South Coast and Hawkesbury floods in April 2024; the major outage in Broken Hill—there's so many; Tropical Cyclone Alfred on the North Coast; and, most recently, the May floods. My colleague Liz attended recovery centres at all of those events, and so she is well placed today to talk about the on-the-ground response. In response to the May floods, we have provided over 1,500 services to 807 clients, and 83 per cent of those services were face to face at recovery centres. We also know that disaster recovery has a long tail, so we're continuing to provide that ongoing legal help post recovery centres and we're still helping people with legal issues from the March 2022 floods and, indeed, the bushfires. We're happy to take questions.

The Hon. STEPHEN LAWRENCE: Just before we proceed with questions, I should just declare an association with Liz Lehmann. I've known her for about 15 years and have had a work and social relationship with her. I thought I'd put that on record.

The CHAIR: Thank you. Do you receive surge funding of some description during a disaster? Do you get additional funding because everyone knows that your workload is suddenly going to increase?

SALLY BRYANT: No. It's a simple answer. Do you want me to go into our funding a little bit now?

The CHAIR: No. Is it Reconstruction Authority-related at all?

SALLY BRYANT: No, not really. We have one tranche of DRFA funding to provide a very specialised service in the Central West, as in joint Commonwealth and State. But, apart from that, our service has relied on short-term temporary tranches of 12-month funding ever since the fires from all different sources. But, no, we don't get any surge funding.

The CHAIR: That's okay. I'm mindful that we very short on time, and it's important we hear from you. I think in your opening statement you described a situation where you work on preparedness and then the immediate response as well as the recovery. The Reconstruction Authority, in theory, should be there for preparedness and recovery. But if you're there during response, that's not normally the space that the Reconstruction Authority would be operating in. How does your work shift and change between a response moment versus a recovery moment, which normally happens a couple of days or weeks after the event?

SALLY BRYANT: I probably should clarify. Using the term response, I mean we're responding to the disaster. We're in the recovery phase. We don't have a place in the immediate response.

The CHAIR: Very good. My apologies.

SALLY BRYANT: It's a bit like a cycle. The preparedness work is always in the background because we're a statewide service, so we're continually working in preparedness. Then we respond to crises in the recovery phase and then the ongoing legal work, the long tail. But it's all going on at the same time.

The CHAIR: In terms of preparedness, for somewhere like the North Coast, where, unfortunately, they're struck down time after time after time, is Legal Aid out there proactively saying to the community, "Hey, get your affairs in order. While it's nice and dry, while we're not in crisis, get your affairs in order so that if something does happen, you're ready to go." Is that what you do? Do you proactively seek that out?

SALLY BRYANT: Absolutely. In communities where they have been struck over and over again, there's often the infrastructure already there with community meetings and RSS workers or CROs [Community Recovery Officers] in council, so, yes, we work with community. We do media campaigns around, "Have you checked your insurance is enough? Do you know what you're covered for?" That sort of thing. The other aspect of preparedness is ensuring that our partners understand legal issues and know how to refer, so that when crisis hits, it's seamless. We do a lot of that work not just with community but also with our recovery partners on the ground.

The CHAIR: Thank you. I'll go to the Deputy Chair, Ms Butler.

Ms LIZA BUTLER: Good morning, everyone. Thank you for your time today. I'm interested to see if you've noticed any changes or improvements as to how the Authority has responded during a natural disaster. How would your recommendation of entering into an MOU with the RA further improve the response in a disaster?

ELIZABETH LEHMANN: I might speak to the improvements. Particularly in the Mid North Coast response, we found that the RAPs targeted to Aboriginal and Torres Strait Islander communities were done really well. I had the privilege of attending the recovery centre at Kinchela Boys Home, which was a community-led recovery centre. It was a very inclusive environment, very open and welcoming for people to come in and explain what their legal issues were. In addition, one of the services they provided was for Revenue NSW to be at that centre. They were able to write off people's fines on the spot, which was a very effective service for people in financial hardship, especially when people are homeless—they're living in their cars and things like that—and the fines can lead to their licence being suspended. I would say that the engagement with the Aboriginal community was done really well. That was reflected in the amount of people that we were able to service. Some 17.3 per cent of our clients are Aboriginal from the Mid North Coast.

Another improvement we're seeing—and I think it's part of our ongoing relationship with RA—is that the ability of RA staff to identify legal issues has really developed. We rely on them a lot for those referrals at recovery centres, because often people are overwhelmed and don't know that they have a legal issue. Embedded in the model of a recovery centre is a morning briefing. At that morning briefing we say what services we provide. Part of that is we stand up and say, "These are some of the legal issues relevant to the demographics of that community affected that you might look out for." In that, RA are understanding what the legal issues are and then referring them to us at the recovery centre. Sometimes a client might say, "This person came to talk to me. I don't know if I do have a legal issue, but I've got insurance." Then we would talk to them and work out that they're entitled to temporary accommodation and they didn't know that they had that benefit.

SALLY BRYANT: I'll talk to the MOU, Ms Butler. In terms of why we think it would be great, I think it's because of staff turnover. Key person risk, to some extent, is that we have a relationship with RA where the partnership team contact us after a disaster, often consult us about what we're seeing on the ground, tell us what the plans are so that we can be ready, then they issue the service delivery plan and we're on the ground. An MOU clearly setting out that relationship, I think, would just be more streamlined and neater.

Ms LIZA BUTLER: Would that help your organisation because you have a turnover of staff? When you lose a staff member who has that knowledge, then the next person coming onboard has to start again. If you had an MOU, then everyone's roles and responsibilities would be really clear.

SALLY BRYANT: I was thinking more from RA's perspective. Yes, certainly for the staff turnover, but more in RA probably than where we sit.

The Hon. STEPHEN LAWRENCE: Just one question from me for Legal Aid. I'm wondering if you've noticed any changes or improvements as to how the Authority has responded after natural disasters?

ELIZABETH LEHMANN: Mr Lawrence, with the response, do you mean in the response phase or the recovery phase?

The Hon. STEPHEN LAWRENCE: Both.

ELIZABETH LEHMANN: We can only really talk to the recovery phase at the point the Reconstruction Authority sets up the recovery centres. That's when we get involved in that space. One of the areas of improvement is that the Reconstruction Authority are conducting after-action reviews after each recovery, and in that after-action review, they're very receptive of the feedback and then will make improvements accordingly. They've done eight after-action reviews which we've been a part of, and the issues in that that are looked at are, for example, whether or not the venue was correct. My experience is that RA is very receptive to that feedback and that they take it on board and make the relevant changes.

The CHAIR: That's good to know.

SALLY BRYANT: Can I jump in and add one other thing that we've seen since Tropical Cyclone Alfred? A lot of community meetings are being organised with all the local partners quite regularly before recovery centres are set up. In fact, with Cyclone Alfred, because it seemed to take so long to land, even before that cyclone arrived, RA had set up community meetings online to discuss what the recovery was going to look like.

ELIZABETH LEHMANN: That's correct. There were community meetings with the community generally. RA partnered with the Aboriginal Land Council and Aboriginal Affairs to also run meetings with Aboriginal organisations. Both those meetings were weekly and regular. It was a great way for information to be fed both ways, because you had the community organisations saying, "These are the issues on the ground. These are communities that we're concerned with. These people, for example, don't have access to roads or food." Then also, in the other way, it was a way for RA to say, "This is when the recovery centres will be open. This is when they'll be. Tell your community," and making sure that information went both ways.

Ms TAMARA SMITH: Thanks so much for all you do, Legal Aid. It's amazing. I was looking at your submission, but before that I wanted to ask you about the long tail. I imagine that the long tail can be very long indeed. How on earth do you triage that with your limited resourcing? I'm guessing there is a cut-off. Could you talk briefly about that? Then I want to ask you something about your submission.

SALLY BRYANT: We provide advice to anyone in New South Wales impacted by a disaster. We don't triage at the outset. We provide advice and limited, minor assistance to get to the root of the problem and maybe do some advocacy. If the matter has a longer tail and requires us to take it further, we then apply a means test. Basically, if clients are homeless or at risk of homelessness, they're likely to qualify for our services. Is there anything you want to add to that?

ELIZABETH LEHMANN: And if they're Aboriginal, they'll also qualify. But you're 100 per cent right about that long tail and the complexity of legal issues that arise. For example, this week I've spoken to clients about the buyback in the Northern Rivers, about being evicted from pod villages in the Northern Rivers and also about insurance on the Mid North Coast. So our service not only provides advice in relation to the most recent disaster, but also previous disasters.

Ms TAMARA SMITH: And that's getting close to four years ago. I had a question about the administration of the Disaster Relief Grant. I think you've been incredibly positive in your submission. I wondered about the lengthy application. You gave an example of requiring applicants to itemise all their lost possessions, even in cases of total loss. We have certainly heard today from other key frontline social support services—not-for-profits—just how horrible it is to watch victims going through their story over and over. I've certainly seen that, and I'm sure other MPs in the room have seen that. Could you just be a bit more specific about what you're calling for there?

ELIZABETH LEHMANN: With the Disaster Relief Grant, there's more than just the application process. That is an issue. It is true that the application process is lengthy. It's several pages and it does require somebody to itemise everything lost. That's also compounded by the fact that the Disaster Relief Grant, the application process is managed by Revenue NSW. When they are at a recovery centre, that's fantastic, but they're often not, so there's some ambiguity around who's there to help the client at the recovery centre filling that application. Once that application is submitted, there's complex evidentiary requirements. For example, requiring somebody who's lost all their contents to take a video of them plugging in their washing machine to show that it's not working.

This was in a case where it's a total loss and there's a flood. It's just not practical when people have already done the clean-up.

After that, if the client hasn't provided all the evidence, they're given a request for further information. The DRG [Disaster Relief Grant] team may call the client or send an email, but often these clients don't have access to email, or their phones aren't working because they're homeless or in a state of crisis, or they've lost their phone in the disaster. After 28 days, if that client hasn't then provided that extra information, their application is closed. On the DRG guidelines, that's not an appellable decision. We have had success with escalating matters within the DRG team to reopen applications and provide that evidence. However, we do submit that the guidelines themselves need to be reviewed to make it a more streamlined process, to make it easier to provide the evidence.

In addition, we'd add that the appeal avenues that are provided under the DRG guidelines are very narrow. For example, you can't appeal a decision if you think there's been a misapplication of the guidelines. You can only appeal a decision if there is new evidence. For example, I have a client in which he's applied for the temporary dwelling component of the grant, which is \$10,000, because his caravan was uninhabitable and the insurer denied his claim on the basis of a wear and tear exclusion. The DRG team then relied on that to say that the cause of the damage wasn't the disaster, it was the existing wear and tear which, in my view, is an incorrect application of the guidelines. However, our appeal submission was denied because we didn't have any new information.

Ms TAMARA SMITH: Thank you so much. It's very, very valuable.

ELIZABETH LEHMANN: Can I just add something. I was listening to the evidence earlier today, particularly about rough sleepers and homeless people applying for the grant. There is a grant component in the DRG for rough sleepers, and that's \$1,200. We have provided statutory declarations for those clients if they don't have a residential address, and they've been successful in getting that grant. That's how we've gotten around the ID requirement or the residential address requirement. I think that aspect of the grant is done well.

Ms SUE HIGGINSON: I was just curious about your relationship with community legal centres, particularly in the regions, what that relationship is and whether you think there's scope for more collaboration with community legal centres in response to legal needs in the immediate throes. Then, as my colleague was referring to, the long game, the long story with all of this. If you could just shed some light on that.

SALLY BRYANT: Thank you, Ms Higginson. I'm very happy to speak to that. Legal Aid coordinates the legal assistance sector response so that we maximise reach and avoid duplication following a disaster. We convene a thing called the disaster legal assistance group, which includes CLCs [Community Legal Centres], ALS [Aboriginal Legal Service], TAAS [Tenants Advice & Advocacy Services] services and pro bono. And then following, once we know what the recovery is going to look like, we meet with the local CLC and the local Legal Aid office. Legal Aid has 25 regional offices as well. We meet with the local teams and sometimes do some refresher training on things like insurance because it might be some time between disasters, and staff might have changed.

For a really granular example of the recent Mid North Coast floods, we met with the Mid North Coast Legal Centre, the Hunter Legal Centre and Central Coast CLC. We came together, provided a bit of training and talked about what the needs were, and then they attended recovery centres. We coordinated with RA and got their permission, and they also attended recovery centres. We have an extremely good relationship with the Northern Rivers CLC because we've worked with them so closely since the March '22 floods, so when we were preparing for Cyclone Alfred, it was really seamless. We knew each other well. We knew the referral pathways. Absolutely, the most important thing is coordination, making sure that we're stretching scarce resources and not duplicating to get across as many people as we can. I guess the only other thing I'd add there is, at the very beginning of a disaster, often the local services are themselves impacted. Our service can come in on the ground and be there in the very immediate aftermath. Like, after Lismore, you might know that the CLC was itself flooded for quite some time.

Mr ROY BUTLER: Thanks very much for your time today, ladies. This is a bit of curiosity, but I'm interested in understanding the legal issues that people come to you with. I've seen some references in your submission about the breakdown—I think it was 17.3 per cent Indigenous and then there's 18 per cent with housing matters and that sort of thing. But I'm interested in understanding the most common legal issues that people come to you with after a disaster, particularly those that relate to the work of the Reconstruction Authority.

ELIZABETH LEHMANN: After a disaster, one of the biggest issues is insurance, so we're advising people about the insurance process and their entitlements under the policy. In the early days, a lot of that is around temporary accommodation and advocating for clients for access to their temporary accommodation benefits. As time goes on and clients have received denials for their insurance claim, we then proceed to do complaints with the insurer and also take matters to AFCA, the Australian Financial Complaints Authority. The other big

area is housing, particularly tenancy—a lot of clients who are in properties that need repairs done or they're served with notice of terminations for evictions for properties that are uninhabitable or partly uninhabitable. Then the next area is the government grants, many of them issued by RA, including the Disaster Relief Grant. Also, in the Northern Rivers, we have the Resilient Homes Program. We also assist clients if they have any issues with Centrelink and any other sort of grant-related issues.

One thing that comes up is the absence of identification. At a recovery centre, we do a lot of stat decs for clients who don't have any identification or who need to prove, for example, that they are a tenant and there's no tenancy agreement. We'll do stat decs to assist there. Another issue is financial hardship. Often disasters can exacerbate existing financial hardship, and we assist clients, for example, by writing off fines, or we refer them to financial counsellors. I would say, in the Northern Rivers, we've done a lot of work with the Resilient Homes Program, which is also called the buyback scheme. We've lodged many appeals for clients who were ineligible for that program and advocated for them to get a buyback based on their individual and exceptional circumstances—their vulnerabilities—and have shown how their vulnerabilities increase their risk to flood.

We also have done a lot of work in the pod villages, which were administered by the NSW Reconstruction Authority but are now administered by Homes NSW. The legal issues that present in pod villages are quite unique in that the occupants there are not tenants so they don't have the protections under the Residential Tenancies Act, nor do they have the ability to go to the NSW Civil and Administrative Tribunal if they're terminated. Other issues are in relation to domestic violence and getting help in relation to that, because we know that disasters can also exacerbate that vulnerability.

The Hon. SCOTT BARRETT: I inferred from your washing machine story earlier, and from some of the other witnesses, that often the onus of proof seems quite high when it comes to claims. I wonder if we've got any idea of what the incidence is of fraud when it comes to making these claims?

ELIZABETH LEHMANN: I don't have those statistics or that data.

The Hon. SCOTT BARRETT: Anecdotally?

SALLY BRYANT: I haven't seen it.

ELIZABETH LEHMANN: I can't comment. I haven't seen it.

The CHAIR: Our time has expired. I thank you for appearing before the Committee today. You will each be provided with a copy of the transcript for corrections. The Committee staff will also email any questions that we, as a Committee, may develop after the hearing as supplementary questions. We would ask that you try to turn these around within 14 days, if that's possible, but if your workload prevents that, please talk to us.

SALLY BRYANT: Sorry, might I indulge for one moment?

The CHAIR: Sure.

SALLY BRYANT: We've read the Insurance Council of Australia's submission, and I note they're giving evidence this afternoon. They make some recommendations around data sharing and joint protocols. If those recommendations were to be accepted and there's going to be an MOU used between the RA and the ICA, we'd very much like to be part of that conversation, as the consumer voice. That's all for now, but those recommendations, we only became aware of them, obviously, after we filed our own submission. We'd love an opportunity to respond to those. After their evidence, we'll know a bit more.

The CHAIR: Sure. My starting point is that I'm concerned about data sharing under privacy. Thank you very much.

(The witnesses withdrew.)

Ms SHARON GUDU, Chief Executive Officer, Carers NSW Australia, before the Committee via videoconference, affirmed and examined

Ms BASTIEN WALLACE, Senior Policy Officer, People with Disability Australia, sworn and examined

The CHAIR: I welcome our third panel of witnesses today. Please note that the Committee staff will be taking photos and videos during the hearing that we may use for our social media purposes. Please alert us if you are uncomfortable with that. It will be no problem at all. Can all witnesses please confirm that you have been issued with the Committee's terms of reference and the standing orders that relate to the examination of witnesses?

BASTIEN WALLACE: Yes.

SHARON GUDU: Yes, I can confirm.

The CHAIR: Would you like to make a short opening statement before we begin questions? I'll go to you first, Ms Wallace.

BASTIEN WALLACE: I begin by acknowledging the Gadigal people of the Eora nation, and I pay my respects to their Elders past and present. I also acknowledge people here and online who have a lived experience of disability. On behalf of People with Disability Australia and the one in five Australians with disability who we represent, I would like to commend Clayton Barr, Liza Butler and the joint select committee for providing the opportunity to review the operations of the NSW Reconstruction Authority during the east coast severe weather from May 2025. My hope is that the lessons learned will go some way to addressing resilience and preparedness for this higher risk weather season.

The disability royal commission, in its emergency planning and response issues paper, expressed its concern over the impact of the COVID-19 pandemic, bushfires, floods and droughts on people with disability, and our National Emergency Management Agency has acknowledged that, during disasters, people with disability face a higher risk of death, injury and neglect. PWDA has previously undertaken research, prepared responses and called for change to disaster and emergency management so it is more inclusive of people with disability to reduce their risk before, during and after a disaster. Our submission to this review identifies the key areas of evacuation centre accessibility, energy resilience and accessible transport and processes for evacuation. We call for an urgent review into these issues and for measures to be put in place to meet the needs of people with disability during this higher risk weather season.

SHARON GUDU: I would like to acknowledge that I am on the lands of the Cammeraygal people and pay my respect to Elders past and present, and to any First Nations colleagues with us. Thank you so much for the opportunity to present to this Committee. I thank you for this important work as well. As you would be aware, Carers NSW is the peak non-government organisation for carers in New South Wales, of which there are over 958,000. Our submission highlighted the vulnerability of carers during disasters and the need for focusing attention on this issue in disaster preparation, planning and support. We know that of the 958,000-plus carers in New South Wales, nearly 30 per cent live in rural and regional areas, and these areas are disproportionately impacted by extreme weather events. The research indicates that not only are carers and the people they care for disproportionately affected by disasters, they also experience impacts for a much longer period of time than other members of the community due to their specialised needs and vulnerabilities. With carers at greater risk of disasters and the impacts, planning and preparedness is absolutely critical to ensure the safety of carers and the people they care for and to ensure that their unique considerations are addressed.

We would like this Committee to consider opportunities to improve disaster preparedness and response for carers. That includes investment in inclusive preparedness initiatives such as the Care2Prepare project that we spoke about in our submission, and that I can talk a bit more about as well; ongoing improvements in the coordination of response agencies and supports to ensure timely access to essential care, medical supplies, accessible accommodation and other supports; and absolute refocus of local emergency management planning processes on inclusiveness for carers and the people they care for. We'd like to see increased investment in recovery initiatives such as grants and rebates to ensure specific allowances in those programs to address the additional needs of carers and the people they care for. We would like to see an expansion of existing recovery initiatives to ensure they are inclusive. I look forward to discussing this further in today's hearing.

The CHAIR: Before I throw to the rest of the Committee for questions, I'm going to ask my first question to Ms Gudu but, Ms Wallace, you might want to jump in as well. In the submission for Carers NSW, you speak about the need to be aware of and check in on people who are more vulnerable. Working on a different committee where we looked at the power outage in the Far West of New South Wales, we heard much the same. It was largely unknown and unseen. The vulnerable people out there may be in their homes alone, without access to services or without good connections to community neighbours. They were known but not known. People didn't

know if they were checked on or not checked on. It got us to thinking about whether or not there should be some type of register. How do we balance the need for those people to be known so that someone checks on them, while also respecting their privacy? Some of that information might be held by an agency or a not-for-profit but in times of crisis might need to be shared, ideally with some agency who might be able to go out there and check on them. How do we get that balance right? I'm going to start with you, Ms Gudu.

SHARON GUDU: That is an absolutely excellent question. I would say that the starting point for working out how to identify people's vulnerability and how to best ensure that they are known about in a time of disaster is the local emergency planning approach. You obviously want to get your plans and the approach in place before disaster hits. Part of that planning should be looking at what we want to do in a local area to ensure that those who are vulnerable are known about. That includes working with partner organisations around that. It is possible to think about a register of vulnerable people, and that could be through an opt-in approach. I would expect that many carers who already struggle with daily life, even outside of a disaster circumstance, would probably be quite supportive of opting in, because they would know that there would be a benefit for them and the person they care for when there is an emergency situation.

This is a slight aside but an important point: Carers NSW is of the view that the New South Wales Government should consider a carer recognition card, which is something that has been implemented in Victoria and Queensland and is under consideration in Western Australia. Having a carer card enables carers to be seen and not to be hidden. If such a card existed and was connected through, for example, Service NSW, it would enable them to access support much more quickly. That's outside the scope of this Committee, no doubt. However, it is worth flagging as something that we have a strong interest in.

BASTIEN WALLACE: I would add to that. People with Disability Australia has done an amount of research and direct meeting and advocacy with some of our combat agencies. One of the things that our RFS [Rural Fire Service] and SES colleagues have discussed with us is the difficulty they face. They would like to be able to help people, but they don't actually know where institutions are or where people are, whether it's private homes, group homes or any of the facilities. They know where aged care is, but that's about it. We heard at the latest meeting of the National Emergency Management Agency that in the Californian fires they had 20 minutes warning to evacuate people in the middle of the night. They didn't lose anybody with disability or anybody elderly. I asked them what the process was.

They explained to me that it's actually the job of the sheriff's department to have that all planned out in advance. They have the buses, the staffing, the personnel, the lifting equipment and all of that planned properly and well resourced in advance so that when a firestorm came in the middle of the night, with 20 minutes warning, everybody was safely evacuated. I think we really need to take a long hard look at the way we do things in Australia because we are having firestorms and floods where we literally have those kinds of warning time frames, and without a really well thought out, well-planned approach to evacuation and knowing where people are and what they actually need well in advance, we're going to start having awful things happen that we'd rather avoid.

Ms LIZA BUTLER: My question is to Ms Wallace but, Ms Gudu, you might want to put in about how Care2Prepare might link in with this. In your submission, you've said that carers were unfairly criticised for leaving people with a disability at an evacuation centre while they went to get other people. Could you just talk to us about how we could improve that for people with a disability in an evacuation centre?

BASTIEN WALLACE: We know that a lot of evacuation centres aren't terribly accessible, but that's not just physical accessibility, that's psychosocial, and that's providing for the fact that when people have paid support, we know, even people who are NDIS [National Disability Insurance Scheme] participants, share their support with at least two other people, and obviously My Aged Care it's a great deal more. We know that carers, if they are even able to help with evacuation, are evacuating many clients. The fact that an evacuation centre has not made any provision for that—I found it quite disturbing that at the NEMA [National Emergency Management Agency] meeting people were criticised for leaving someone, but they had to go back and get the others. In the case of My Aged Care clients, that could be many, many clients. I really think there needs to be a long hard look taken at any of this because people have many responsibilities to different people, and even in a family you might be evacuating the grandparents on one side and the in-laws on the other. We need to really look at this as the reality of what it takes to care for people but also to care for people in a crisis.

Ms LIZA BUTLER: Has the Reconstruction Authority reached out to you at all to say, "Yes, we acknowledge that there's an issue there and we'll work together to sort something out"?

BASTIEN WALLACE: Not yet.

Ms LIZA BUTLER: Sharon, with the Care2Prepare program, have you worked with other agencies to address issues like that for carers to say, "This might happen"? Is that in that program?

SHARON GUDU: We have done workshops and capacity building with service providers on how to support carers with planning, and we've also done one-on-one household readiness plans, and we've had excellent feedback from carers about that one-on-one planning. It helps them to really think about the future that if a certain set of circumstances occur, what will they do, what do they need to have in place, who do they call et cetera. For us, we think it's absolutely critical to do that, so both those aspects, capacity building with service providers and the one-on-one planning. Unfortunately, the funding from the Commonwealth has ended for that program. We are looking at how we might be able to continue some of the capacity building work, but we don't have the funding available for the one-on-one readiness planning for individual carers, but we certainly would raise that as something for this Committee to consider because we think it's essential. Carers are already so vulnerable, as are the people they care for, that they need that support to really think about their circumstances and what they're going to do if they should be faced with this situation.

Ms LIZA BUTLER: In that Care2Prepare program, does it go into what you might expect at a recovery centre if you have to be evacuated?

SHARON GUDU: It does, yes, and it also talks about all the circumstances in the home of what people need to think about preparing in advance and what they are going to do if there's a power outage, what they are going to do if they can't access medications because the roads are flooded and all of those sorts of things. It's the full gamut of how can they keep going if disaster hits and interferes with the normal cycle of care.

Ms LIZA BUTLER: You said other agencies and providers, but what about the Reconstruction Authority? Does it assist with any of that planning in that program you've put together?

SHARON GUDU: I'd need to double-check on the extent of their involvement.

The CHAIR: Ms Gudu, could I just ask you to take that on notice? We'll work with you around that.

SHARON GUDU: Yes, absolutely.

The Hon. CAMERON MURPHY: I might just ask Ms Wallace a question along the same lines. The other issue you raised in your submission is about provision in the evacuation centres for energy, for example, because people might have equipment they need to use or medication that requires refrigeration. I wanted to see if you'd had any engagement with the Reconstruction Authority about those issues. It's not just the carers who have to go back and collect other people they're looking after, but what provision there is in an evacuation centre for somebody with disabilities that has all of that extra stuff that has to be taken care of? Has that been thought through? What sort of engagement have you had with the Authority on it?

BASTIEN WALLACE: I haven't had any engagement yet with the Authority, but we were raising the issue of energy as well around shelter-in-place orders, which, for Tropical Cyclone Alfred, was quite relevant. People may be identified as needing energy, security or resilience when they operate life-saving equipment—ventilators and things that are keeping them alive—but they don't necessarily fall eligible because they need energy for refrigeration to keep their medications fresh. They don't necessarily count if they are people who need to keep their mobility assistance devices or their communication devices charged. For particularly our older people, who have those back-to-base alarms—the fall alarms—they need their energy and connectivity so that those actually connect, and some people with implantable devices connect via mobile phone networks to communicate to their physicians.

So there needs to be a broader consideration of energy, whether it's shelter in place or at the centres, and we are aware that NDIS doesn't fund generators anymore. For people who are on low incomes, buying batteries and generators is difficult. But also for people who may not have the capacity, and their carers have been told to stay home and shelter in place, they may not be even able to operate those generators by themselves anyway. So there is a real need for that energy planning and to take a broader perspective than is currently being taken, whether it's shelter in place at home or whether it's in those emergency centres where people are going to need that provision.

Mr ROY BUTLER: Ms Gudu, you ran close to this response in your response to Ms Butler, but we'll have a go anyway. As both peak groups for carers and people with a disability, how well has the Reconstruction Authority engaged with the sectors and with individuals? Has it gone down to that level?

SHARON GUDU: I would need to take on notice how well they've engaged with the sector. Just to highlight, I've been in my role for two weeks, so I'm not as much of an expert on the relationship with the Reconstruction Authority as I intend to be as I go forward. However, in terms of the connection to individuals and their needs, I'm absolutely advised that that is not satisfactory, and that's not a criticism of the Reconstruction Authority. It is really just a calling out for government and all the related agencies that come together in these kind of circumstances that the needs of individuals are not sufficiently understood.

It goes to your earlier question about a register of vulnerable people. How can the needs of individuals be better understood and how can individuals be better supported to do their preparation in advance of being caught up in an emergency or disaster situation? There is enormous amount of room for improvement, both from the Reconstruction Authority and the agencies that it works with. Even to the extent, for example, of where there will often be a grants process or some sort of emergency payments that become available, they don't call out the needs of carers, who might need some additional allowances in order to secure equipment or medication or whatever it might be to meet the very specific needs of the person that they care for. So there is absolutely room for improvement at that individual level.

Ms SUE HIGGINSON: For things to improve in terms of the Reconstruction Authority better accommodating for the needs of people with disability and for carers, if you could reset or start things tomorrow, what would you most like to see in terms of the Reconstruction Authority? I quickly note some of the feedback we heard earlier that the Reconstruction Authority perhaps has a bit of a trick about consulting. The notion about co-design has come up. I'd be curious to know what your views would be.

BASTIEN WALLACE: Thank you very much for the question. Definitely in our research and recommendations—I brought with me some postcards that refer to our page where we've done research, prepared a report, put that into Easy Read and made it accessible, socialised it with our peers and had their feedback as well. There is a real need to co-design with people with disability. When we reached out to peer organisations, the level of awareness and engagement around emergency management, person-centred emergency plans are very different across different cohorts. Some people's stage of readiness is way back here; some people are a little bit further along the way. But a lot of organisations are just not resourced, and their funding is not flexible enough to start that work with their members. There's a real need to do co-design that involves listening. Certainly, when I've been in meetings, there is a great system for communicating down; there isn't really a systemic system for listening to the feedback that comes from the people. That can be in an emergency. Even when the flood monitoring gauge has gone out or those sorts of things, there needs to be a process for systematic listening. People with disability, carers and elders need to be actively included in that process, and not just as a tick-box consultation but one that actually gets acted on.

Ms SUE HIGGINSON: Ms Gudu, did you have anything to add to that in terms of what you would like to see?

SHARON GUDU: I absolutely support what Ms Wallace has said and support that consultation and co-design is essential, with a strong focus on inclusivity—so inclusive disaster preparedness and embedding a person-centred approach. I think the Reconstruction Authority can exercise a lot of leadership. If you look at local emergency plans, for example, they're pretty silent on how to be inclusive. I think there's a lot of room for improvement. I would suggest that the Reconstruction Authority could start at that top level of planning. Then, through that process of consultation and co-design, it could work down to the individual level to ensure that they bring the whole sector with them—so the sector that supports people with a disability, people with a chronic illness, and people who are elderly and their carers—in a co-design approach that really gets to the nub of how we can make this work better on the ground. I think there would be a statewide approach to setting planning expectations, but then also have a very localised approach because the circumstances of different local areas are obviously very different. Different local councils would have different considerations, depending on their environment. I think it's from the top down all the way through to the ground.

Ms SUE HIGGINSON: The relationship that your organisations have with Aboriginal-controlled organisations that are dealing specifically with First Nations people with disability—how does that work in your different sectors?

BASTIEN WALLACE: In our sector—in our roundtable consultation about our research, we engage with First Nations people with disability. They identified that perhaps First Nations people with disability really hadn't even been having the conversations because, with the language we're using, they think, "Does this even apply to us?" There was a real need to do that work. We don't tend to deal directly with the Aboriginal-controlled organisations ourselves; we go through First Nations people with disability. They will advise us on a great many matters where we work with Indigenous people.

Mr RICHIE WILLIAMSON: The evidence of you both has been very insightful this afternoon. Ms Gudu, my question is to you but not exclusively. Ms Wallace, please chirp in if you feel the need. In the submission—and I've spoken about preparedness already today—I was a bit taken back at the lack of preparedness in the carers space. I think south-eastern Sydney is at 10 per cent when they've said they need a plan. The Mid North Coast LHD [Local Health District] is probably the biggest, at about 53 per cent of people that have a plan. How does the Reconstruction Authority work more closely with your organisation—and probably yours too, Ms Wallace—to get those numbers improved so that everybody at least acknowledges that they need a plan?

SHARON GUDU: I think it would be extremely positive if the Reconstruction Authority could establish a working group that included peaks such as Carers NSW, People with Disability and other relevant peaks, including representatives of the Aboriginal controlled sector—for example, AH&MRC [Aboriginal Health and Medical Research Council], who would be pretty important. We do some work with them. I think the Reconstruction Authority could exercise some fantastic leadership by doing that, and we would be extremely happy to work closely with them on that.

BASTIEN WALLACE: I would certainly echo what Sharon is saying. I would also add to this that we can write, and we can have clients write, all the plans in the world, but the problem can be capacity to actually execute them. As I pointed out in my submission, for most of rural and regional New South Wales, it's public what, not public transport. The funding restrictions forbid community transport, which is often the only form of accessible transport from being used to evacuate anybody. So people don't necessarily have the capacity to even evacuate. We need to look at not just making a plan, but can it be executed? For a lot of people, that just isn't possible. That can be down to transport. It can be down to communities who perhaps have one way in and one way out, and that's been cut off by fire or flood. It's building developments that do that. It's all of the things that enable people to have the capacity to actually do that plan.

Yumi Stynes from the Older Women's Network pointed out that a lot of older women couldn't even push their door open if there were floodwaters holding it shut. So they could have a plan, but they can't get out. I think we really need to go back to basics, because some of the stuff about having a plan presumes that you are fit, strong and have plenty of financial resources. With all due respect, it's built for big, boofy blokes. As we know, a lot of carers are children or elders. Thirty per cent of the people in our recent health survey were people with disability who also cared for someone with a disability. So I think we need to look at the realities of our society.

The CHAIR: What a place to finish. Thank you for appearing before the Committee today. You will be provided with a copy of the transcript for corrections. The Committee staff will also email any questions taken on notice from today. Ms Gudu, for your sake, the Committee secretariat will send out the part of the transcript which is relevant to the question taken on notice so that you have the context around which the question was taken on notice. So you don't need to worry until we send you the bits and pieces.

SHARON GUDU: Excellent. Thank you.

The CHAIR: We, as a Committee, may also develop some supplementary questions that we want to send to one or both of you after considering your evidence today. In both instances, we kindly ask that you return the answers within 14 days, if that's at all possible and if your workload permits. If it doesn't, please talk to us about that. The Committee will now break for lunch and return at 1.15 p.m.

(The witnesses withdrew.)

(Luncheon adjournment)

Mrs JILL SAMUELS, RSS Team Manager, Mid Richmond Neighbourhood Centre, before the Committee via videoconference, affirmed and examined

Mr SAM HENDERSON, Chief Executive Officer, Northern Rivers Community Foundation, and Steering Committee Member, Northern Rivers Community Resilience Alliance [NRCRA], before the Committee via videoconference, sworn and examined

Ms ELLY BIRD, Executive Director, Resilient Lismore, and Steering Committee Member, Northern Rivers Community Resilience Alliance [NRCRA], before the Committee via videoconference, affirmed and examined

The CHAIR: I welcome our fifth panel of witnesses. Could I say to the witness that please note that the Committee staff will be taking photos and videos during the hearing that we may use for social media. If you have a concern about that, please let us know. We'll be happy to oblige. Can all witnesses please confirm that you have been issued with the Committee's terms of reference and information about the standing orders that relate to examination of witnesses?

ELLY BIRD: Yes.

SAM HENDERSON: Yes.

JILL SAMUELS: Yes.

The CHAIR: Would either or both of the organisations like to make a short opening statement? I'll throw to the Northern Rivers Community Alliance first.

ELLY BIRD: Thank you. I might just speak briefly and then hand over to Sam. The Northern Rivers Community Resilience Alliance is an alliance of around 60 organisations with a very active membership of around 35 community resilience organisations across the region. We have been working together for around two years now, and our efforts are to strengthen community resilience across the region by improving our community-based capability. The efforts of our collective organisations are significant. Many of the organisations that are part of our alliance are members of community resilience networks that are linked to the local emergency management committees [LEMC] established across the Northern Rivers. We have a detailed understanding of the activities of the Reconstruction Authority since the disaster of 2022 and also in subsequent events, such as Cyclone Alfred, which came very close to our region in March of this year. It's that context that we bring to the inquiry today and we look forward to discussing it in more detail with you.

JILL SAMUELS: Mid Richmond Neighbourhood Centre—we've been an established neighbourhood centre in the lower Richmond since 1978. We produce and facilitate programs across all of the age groups and settings in all of our vulnerable communities. When the 2022 event happened, we were initially funded through DCJ to work amongst those vulnerable communities and to start looking at what the needs were. We were fortunate enough to then be funded under the RSS funding and since then have worked very closely with our communities across the Richmond Valley and a little into the Ballina area to assist with the rebuilds, with advocacy, information, referral, wraparound services and case management. I feel we have quite an intimate knowledge of our communities, and that's what I'll be talking about as the needs—I'm sorry. I'm feeling very nervous.

The CHAIR: Please don't be. We're more nervous than you are.

JILL SAMUELS: I can see some faces I know, but I'm still feeling nervous.

The CHAIR: Thank you. Are you finished, Mrs Samuels?

JILL SAMUELS: Yes, I am. Thank you.

The CHAIR: I'm going to go back to Mr Henderson.

SAM HENDERSON: On behalf of the Alliance, I don't really have anything to add to the opening statement of Elly Bird, but I'm sure individual perspectives will become clear during the conversation.

The CHAIR: Certainly. I am going to start the questions, if you don't mind. This one is specifically for the Northern Rivers Community Resilience Alliance, and I'm referring to your submission. One of the dot points there about the challenges refers to—and I'll read it out—there were some delays and unclear roles from DCJ, SES and RA, for example, a lack of clarity around whose job role it was to do A, B, C, X, Y, and Z. Of course, you will understand, we moved from response to recovery. Was that shift from response to recovery, the shift from the emergency services being the front line to the Reconstruction Authority taking on their role—was that not made clear to you? Was that communicated, or was it made clear but it just rolled out clunky? Could you just expand on what you've written there?

ELLY BIRD: That statement is in reference to the complexity of the network that we represent. We have many community groups who are members of the community resilience networks [CRN]. Those member groups aren't necessarily getting the same insight into that transition from response to recovery that combat agencies or those relevant government agencies would have. At a community level, I guess there are community groups and actors in the resilience and recovery space who get very confused about what's going on, who's in a leadership role and what the roles and responsibilities are for each agency at any particular time. We understand and recognise the complexity of the network that we represent and that that is also informed by the experience that we've had in 2022. I would just conclude by saying that we are really supportive of all of the excellent work that's being done to try to improve communication pathways between LEMC, DCJ, SES and the community. But, yes, it is confusing, and it is confusing at a community level around who has responsibility for what and how things will play out in our local communities.

The CHAIR: Putting aside the community's confusion—and I appreciate and understand exactly why that would be the case—for the three of you, as peak bodies, at any given time is it clear to you who is the lead agency?

ELLY BIRD: Speaking for myself, yes. I am in a fairly unique position, I suppose. Jill is as well. We are both members of the Northern Rivers Resilience and Recovery subcommittee, so we do have insight into what's happening at the LEMC level. I was given a guest seat at the local LEMC during Cyclone Alfred. For me, as a representative, I do understand that, but the communication channels to the other organisations in our network are less clear.

The CHAIR: Fair comment. I appreciate it.

SAM HENDERSON: I guess I'm not as involved on the formal, structured side as Elly, so it's more of an uninformed view. There might be a formal leadership role and people may understand that. But I guess what we saw during Alfred is that even when that's formally known, once people start to feel uncertain or start to feel a little bit fearful, or whatever the case may be, if the theoretical leadership is there, that's one thing, but not feeling that that's being applied on the ground—I think sometimes there's a difference between those two things.

JILL SAMUELS: For me, I think the communication was certainly better than it had been prior, purely because of our being able to be a part of those committees that we're able to hand down that information. We also facilitate a CRN, so as the reports were coming in as the daily meetings were happening, we were then able to feed that information coming out about what everyone was up to, out through our networks that way. To me, that was the first time I believe that's happened. So even though it wasn't perfect, as does happen, I actually saw it as quite an improvement on what had happened prior.

Ms LIZA BUTLER: I have got no video, so sorry that I can't see anybody. I want to know if you can elaborate on the importance and the advantage of community-led recovery. How can the Authority improve its collaboration with these grassroots community groups?

ELLY BIRD: I might kick off again. It's going to sound like a very basic response, but we do think that there needs to be an approach to funding for the community-based organisations who are leading this work. We have a very large network of volunteers. I will be quite frank that those volunteers are often women in their communities, who are doing significant hours and contributions towards resilience efforts. We are really hopeful that, with the development of the disaster adaptation plan, that there will be a recognition of the importance of the community networks in the Northern Rivers, and in every region where adapt gets implemented. We are very hopeful that, in that recognition of the importance, there will be some consideration of mechanisms for ensuring that those groups continued existence is resourced.

JILL SAMUELS: I truly believe that "community-led" is incredibly important. I think the difference between previous events and the ex-tropical Alfred event was one. We did have our RSS and community groups on the ground. We were ready. We were ready to move. We were able to give information out to our community. Where we sit? We sit in our communities. It's not coming over—we're actually able to give it to people's faces. We're able to dissipate that information out there. I think community, in some areas—and we do work with vulnerable communities; I hope I don't get sidetracked here. There are some groups that have a mistrust of information that comes through government levels and areas. When you talk about "community-led", we're talking about using NGOs, we're talking about community groups, we're talking about those people that have places, live in our communities, work at communities, know our communities and know their vulnerabilities. I believe that's where we sit with that trust level and an integration into community—between the two. Does that make sense?

Ms LIZA BUTLER: But what can the RA do better to break down the challenges that you've outlined?

JILL SAMUELS: I think I'll go to Elly, where the RA needs to recognise that—I know in any of the recovery plans there are the tiers of governments. We've got Commonwealth, State and then our local. Where is it cemented that those community organisations are the ones that will lead things from the ground? That's the

improvement that needs to be made, absolutely. That's the gap that was missing before the RSSs were ever put in place and that's the gap that will be missing again, because we know there's going to be another disaster. It's just when. What was so good about the Alfred response is that we were already there.

SAM HENDERSON: Certainly, our experience here with all the Alliance members is—we are 3½ years on from 2022 and other events such as Alfred are coming through. Many of these groups are purely volunteer led and they've been drawn on for many things. There's definitely fatigue if not burnout that has already crept into many of them. And yet there's this incredible asset in these groups sitting on the ground. They don't need, necessarily, to be fully paid services or something like that but some kind of light resourcing to now allow their ongoing readiness state or standby state without them having to churn and burn to pay their insurance or tiny amounts of money. I think that we're delivering incredible value for the State Government rather than externalising those preparedness and readiness costs and ultimately drawing down and burning out community members, which will weaken the whole response system.

ELLY BIRD: With your permission, Deputy Chair, I might just add another thought there. We have an example where we have existing arrangements for evacuation centres, for example. The Salvation Army and the Red Cross and those sorts of organisations have standing arrangements with DCJ. We think that there should be something similar with the Reconstruction Authority and with recovery that standing arrangements and MOUs should be put in place with organisations ahead of time, so that we have some certainty that, when we are called on and required to support our impacted communities, that work will be resourced. It's very difficult to plan to be able to mobilise and support our communities without an understanding that we will be considered and that our efforts will be recognised.

The Hon. STEPHEN LAWRENCE: Thank you to you all for the work you do in the community and for coming along. I just have a simple question: Are you able to tell us ways that the Authority could improve the way that it works with grassroots, community-led groups? It's probably not simple.

SAM HENDERSON: Could I start there? Thanks for the question, Stephen. I'd like to reflect on my day job, which is CEO of the Northern Rivers Community Foundation. We're a community-based philanthropic outfit that supports charities and not-for-profits across the Northern Rivers. Both in 2022 but also in Alfred, because we've got 20 years of experience and extensive networks, we were able to very rapidly get resources to not-for-profits that were on the ground preparing and responding to the different events. Our feedback from them—and, in fact, the RA has just completed an external consultant review of our practice—is that getting those funds rapidly to the organisations that are in the community and supporting the community really leverages the positive impact and effects.

In Alfred we were talking micro grants of \$5,000. We were able to have an application and release process of the grants in under seven days because we already know the groups. It's almost like our due diligence already exists. And because we're in the community and talking to people, we know what the emerging need is. I say all of that as context. I know it's hard because granting decisions require appropriate oversight and ministerial sign-off. But some kind of mechanism or infrastructure to rapidly release funds to the supportive groups and networks in disaster zones would be a very significant improvement in the way RA could work with the communities.

JILL SAMUELS: I was just thinking how the RA could make it easier. It would be clear and more rapid—I like definitely that—communication. I've had some wonderful people in the RA who have worked so well alongside us and led us. We've been able to brainstorm and look at the best ways of working together. It's not that individual thing; it's policy and procedure. It's those things that seem to take so much time to come out. We need something a little faster. I know that a lot of this is quite new, although it is going on a few years now. Hopefully something will be solidified moving forward so that those won't take so long in future. But it's the frustration and the waiting for procedures to go ahead. The weight of that sits on our communities, who are quite unsure about what the next decision will be. The impact on their mental health has not been pleasant to watch. Some of those processes are still slowly rolling out, and people are still not aware of where they're going to be standing within that system.

ELLY BIRD: I'd like to touch on community engagement. Recently the DAP [Disaster Adaptation Plan] guidelines were released, which have some really strong principles of community engagement built into them. But we haven't really seen a strong approach to community engagement since inception. We don't just have fatigue; we have engagement fatigue. People like the folks in our resilience networks are constantly being asked to engage, to reflect, to contribute, to review and to participate. It feels like that community engagement could be more strategic and better planned, with more lead time for the folks that are engaging in those processes. The DAP is an example. It has been very challenging.

We're very grateful for the regional delivery team approach. It's really important to have people who live in our regions working for the RA, who are responsible for the work. We are really opposed to too much centralisation of the organisation in the metropolitan areas, because what that means for us is that we keep having to repeat ourselves. I couldn't count the number of hours that I have spent briefing RA staff as they come in and out of different positions. A strong regional delivery approach where those relationships don't have to be reformed continually is really important.

Mr RICHIE WILLIAMSON: Jill, my question is to you but not exclusively. Elly and Sam, please chirp in because I'm sure you'll have some knowledge on this. Jill, I think we called them community recovery officers. I'm pretty sure that was the term that we used. I wonder if you might explain to the Committee the role that they played in recovery, the amount of knowledge that they learnt and what the benefit of funding them through Reconstruction might be.

JILL SAMUELS: I'm assuming you're talking about the council position—CROs?

Mr RICHIE WILLIAMSON: Yes.

JILL SAMUELS: In my mind, the CROs were the conduit in bringing information from council to community and to our services. CROs sat on the CRNs. There are a lot of acronyms, aren't there?

Mr RICHIE WILLIAMSON: Too many.

JILL SAMUELS: The information created that two-way information effect. It would come from council to us. We'd be able to let everyone know what that information is. The needs of our local areas would then be able to feed back to our council via our CROs. That makes it concise.

ELLY BIRD: I'd love to chime in from a Lismore perspective in particular. We've had an experience—and Jill has as well—of multiple CROs over multiple events under different government agencies. It's always challenging because the roles are time limited, and so those folks come in, they have to spend quite a lot of time building relationships, learning the community fabric and then starting to deliver and engage. We've seen very different outcomes in communities where there is a permanent resilience officer position. For example, Byron Bay has a self-funded community resilience position, and I would say that the support that is provided and the support that is perceived within the community is very different to other LGAs.

I strongly believe in and advocate for permanently funded CROs positioned within councils, and that could be determined through the risk profile for a particular LGA. I know that we can't necessarily see that for all LGAs. But, again, with the Lismore hat on, we have a very high risk in this LGA and we do need a permanent funded position like that within councils, but councils will always struggle to find the funding that is required. Those CROs then provide a necessary bridge to the Reconstruction Authority and to the regional delivery team, which is not operating at an LGA-specific level.

JILL SAMUELS: Now that you've opened that one up, Elly, can I keep going? As part of my submission, I looked at a cyclic approach because the Northern Rivers is incredibly disaster prone. We know it. It's not a big gap between disasters, looking at bushfire, flood, the pandemic and things like that. It should be that cyclic approach, and that's the same as our CROs. There should be that permanency there all the time. As far as your RSSs or your supported community teams, we should be going through from the recovery phase to capacity building. We should not be stopping.

The teams would wind back during that capacity-building phase, but they would be there with the knowledge, with the resources and with everything ready to go when we had to stand up again, at a reduced cost to government. If we have to stand everyone down each time and we have another disaster where we have to stand everyone up again, the cost associated with that—along with the lost knowledge—is phenomenal. We should be cyclic. We need to have this cemented now into our planning. Obviously I'm talking about the Northern Rivers today, and I'm very passionate about it because I can see how much we're going to lose as all these parts are stood down to then have to find it all again to stand it back up.

The CHAIR: Thank you very much. Ms Higginson?

Ms SUE HIGGINSON: Hi, all. It's wonderful to see you all. I have a new acronym for you. You're the BPEs; you're the best people ever. Thank you for everything you do. You know how much I get to see the work that you do and how important you are. I just want to ask two things quite specifically, but first I note that the submission prepared by the University Centre for Rural Health was quite critical in terms of Cyclone Alfred. I know that many of us went, "Gosh, we're so much better off than we were in 2022," but at the end of the day there were some serious criticisms around what happened. I was on the ground and I remember evac centres weren't opening. The ones that did open took ages to open, and then they didn't have materials like bedding and

they weren't properly resourced. I would love you to, if you can, elaborate on that a little bit. I'm just going to fire three questions and I'm just going to let you address them as you want.

Firstly, where did you see things go wrong and what could we do to make sure that we don't get into that position again? The other one is that I would love to understand the relationship between your incredible community organisations and the uniforms, and where that's at at the moment in terms of relationships and perception of those relationships from the RA. Finally, the other point is, where do you see that things could be better—in addition to resourcing—with the Reconstruction Authority in relation to co-design? There are three things there, and I've done it as three things so that I could get away with it with our very strict Chair here. It is the response to Alfred and those criticisms, the relationship with the very important community uniforms and volunteers and paid people, and the Reconstruction Authority better recognising the role of all of you and the organisations. I'm happy for anyone—whoever wants to go first.

ELLY BIRD: I'll kick off, thanks. There is a lot of pain in the community around evacuation centres across the region, and there are a couple of points there that need to be considered. DCJ and the WelFAC [Welfare Services Functional Area Coordinator] department that are responsible for evacuation centres are rightly taking a very risk informed approach to collaborating with community around evacuation. But what that meant during the height of the disaster was that plans and procedures where community can support the establishment of evacuation centres were not in place. There has been some interest in some particular communities around community-led establishment of evacuation centres until DCJ staff can get there, so just in that early phase while those communities are isolated. But in the time between disasters, a risk approach snaps back in, so we don't see any progress in terms of moving that forward. Lots of confusion in Alfred, I think, again, and what it reveals is that we're not ready for another region-wide disaster.

In 2022 it was a regional disaster, with multiple communities impacted simultaneously. In the Northern Rivers we need to plan for another disaster of that scale, and I'm not sure that there is appropriate resourcing and, I understand, capacity around that resourcing to be able to stand up and operate multiple evacuation centres at the same time. That's where a lot of the pain points in the community came from. The capacity isn't really there within government agencies. Communities want to help and want to support, but are not really being enabled to provide that support because of the risk-based approach.

If I go to the emergency management relationship, speaking from my perspective as a participant in the Northern Rivers region Resilience and Recovery subcommittee, it's strong. I would credit leadership from Superintendent Scott Tanner, who has moved on to Liverpool now. But he has really led the way in terms of recognising the importance of community relationships with emergency management agencies. That is subsequently being led by Mark Johnson, who is a local emergency management committee coordinator. We're heartened by the new superintendent, Dave Roptell, who seems to be carrying that forward. So yes, it's strong. It's definitely recognised by, supported and enabled by the Reconstruction Authority. So the RA are underpinning the governance of that relationship building and have done since inception. And I'll mention—as much as you don't want to mention particular people—but Lani McNeill at the RA has been incredible in terms of shoring up that governance structure of the CRNs and various subcommittees.

The third point around what can we do in terms of resourcing and co-design, I'd probably point back to my community engagement comments earlier. The community advisory group that is being established now for the disaster adaptation plan is a move in the right direction, and I hope that that's successful because I think that a model like that should be considered into the future so that RA have a community-based body that can provide them with necessary insight.

Ms SUE HIGGINSON: Sam or Ms Samuels, did you have anything you wanted to add to any of those three things?

JILL SAMUELS: No, Elly said it. I just would have to home back in on the evac centres. They do cause issues, especially with our outlying communities. By the time they're open, those communities are cut off, so that causes issues. And also I know down our way, you're right—bedding, food; those resources are going to be needed during the night. We're not in place in a timely manner at all. Again, the Resilience and Recovery subcommittee has been fantastic. I think the relationship is really good. I'm very happy with that. I'm only backing up what Elly said, actually. Well done, Elly.

SAM HENDERSON: I concur too. I'd say that one of the points of confusion was that different evac centres were at different stages and had different levels of preparedness. Of course, community are talking in a lot of back channels, and I think there was a lot of surprise about the differences, which added to some of the straining community.

Mr RICHIE WILLIAMSON: Chair, I wonder if I might ask a question on the evac centres, if you don't mind. In my electorate, they seem to be a bit transient. In a lot of cases, in one emergency it'll be evacuation centre A; in the next it can be B. Messages get a little bit lost in community about where to go and, perhaps, when. Would it be of benefit if there were more permanent facilities? I'm thinking of registered clubs, for example, or perhaps schools that were funded appropriately to be on standby to be an evacuation centre when the next disaster happens.

JILL SAMUELS: I think so. I can understand the point of view of everyone holding the evac centres: It's so people don't panic and go immediately when they don't need to. I get that. Just because they're designated doesn't mean that doors have to be open at that particular point in time. But if the resources and all those basics are ready to go, I think that would help communities settle a lot because they'd know where they're going if they have to go; there's no wondering about that. I'd be a little careful about using the schools, purely because of what we saw after 2022. A lot of young people in that area, in all our outlying towns, lost everything they owned and then couldn't go back to school because the schools were full of evacuees. It made sense, of course; we had to put people somewhere. But they'd lost so much and then they're held up returning back to their school and back to their peers and their place of belonging. So I'd be a little bit hesitant about schools. But yes, I think formalised evac centres that give people some certainty about what might be happening next would be a great idea.

ELLY BIRD: I would chime that there's a lot of research recently by a fellow called Daniel Aldrich, who is researching the importance of social capital and social infrastructure. Communities should absolutely have emergency-ready community facilities at their heart, where communities can come together to weather any storm. Those buildings and facilities should have battery power, should have water and all the things that are required for communities to be able to be safe at the height of emergencies. I would absolutely support government resourcing that as an approach in regional communities in particular. It's not that our metro communities don't need it as well, but regional communities absolutely need strong community facilities.

The CHAIR: Mr Butler?

Mr ROY BUTLER: Chair, I don't have a question. I just want to say thank you very much for your time today and also for your submission. It's quite short, but it's very punchy. It has a lot of good information in it, so thank you very much.

The Hon. SCOTT BARRETT: I have two questions, but I'll only ask one of them, unless the answer is a blanket no. We heard this morning a bit about the challenges—almost new challenges—that we're seeing with more primary producers coming forward after an event. I wonder if there was some exposure to those challenges and if anyone could talk to what they were and what some of the solutions might be.

JILL SAMUELS: We've had some contact over the last two events with our primary producers and small businesses. I think there are certainly grants that are able to assist, but there are also the loans. What's happened is that after an event, businesses or primary producers have got their loans, but they haven't paid it off before the next event. That has created a problem—a backlog—so they don't get access to the extra support that they need. In our case, probably because of our demographics down this way in the Richmond Valley, we are certainly seeing more engagement from primary producers this time around, which is really good news.

The bad news is they're coming in because they're feeling frustrated. I might have gone off track. But anyway, I'll keep going. Even down to claiming on some of the grants, it's quite a task to upload the information piece by piece, payment by payment, invoice and receipts. Then you can't save it and the whole lot has gone again, unless you're submitting it all at once. Those difficulties make it really hard for people, primary producers in particular, to access. Their internet reception might not be as good. That can be quite frustrating for them as well. So I think we need to simplify processes. I probably didn't answer anything you asked. Sorry about that.

The Hon. SCOTT BARRETT: No, that was perfect.

SAM HENDERSON: As a community foundation, we partnered with Monash University on the Fire to Flourish program. We have funded it since the Black Summer bushfires, but also the recent ones at the end of 2023. We gave grants out in the cases of fence losses, because that would obviously allow stock to wander onto roads, which is a real public health and safety issue. That's not a normal space for us but we engaged with the rural landholders and farmers. Our observation, which may be obvious, is that the scale of funding that's needed to replace fencing quickly and en masse is something we can't do as a community-based philanthropic outfit. It's something that requires either insurance or other forms of support to cover it.

The Hon. SCOTT BARRETT: Elly, do you have anything to add to that?

ELLY BIRD: The final thoughts I would add are about access. I reflect on the experience of primary producers who are impacted by floods, for example. There's often a huge amount of activity focused on the urban areas of regional areas, so primary producers out on large farms with significant impacts are often managing that

on their own. Our organisation and some of the organisations we network up with have a real focus on trying to coordinate volunteer responses, but we can't always get out to those rural properties. I would really love to see a coordinated approach that makes sure we can achieve some outreach to those farmers to make sure that they are supported and networked in. We can't wait and force people to find their way to the recovery services that are provided. We need to go to them because they're so busy. As soon as they're impacted, their heads aren't going to come up for quite some time.

The CHAIR: Mr Murphy is one of our Committee members who is online. In our last two minutes, I don't know if he has a question.

Ms SUE HIGGINSON: He has disappeared.

The CHAIR: Given that, I thank you all for appearing before the Committee today. You will be provided with a copy of the transcript of today's proceedings for correction. We, as a Committee, may also develop some supplementary questions that we would like to send to you following your testimony today. If we do that, we kindly ask you to return these within 14 days, if that's possible, if your workload allows. If not, please talk to us about that. Thank you so much for appearing today and for all the work you do in the community.

(The witnesses withdrew.)

Mr GRAEME McCRABB, RFS Member, Menindee Headquarters Brigade, NSW RFS, before the Committee via videoconference, affirmed and examined

The CHAIR: I welcome our next witness. Please note that the Committee staff will be taking photos and videos during the hearing. The photos and videos may be used for social media and public engagement purposes. Please let us know if you are not comfortable with that and we will oblige. Before we start, can you confirm that you have been provided with the Committee's terms of reference and information about the standing orders that relate to your appearance today?

GRAEME McCRABB: Yes, I have.

The CHAIR: For the sake of transparency, I'd just like to declare that I've known Mr McCrabb for some time now and had many interactions with him—although I've never seen him in a tie.

Mr RICHIE WILLIAMSON: Especially a pink one!

The CHAIR: Mr McCrabb, I'm going to just open it up a little bit for you to set the scene for us. There were the power outages in October 2024. Menindee is quite isolated physically; I think you're about 100 kilometres away from Broken Hill. Once the power went out you were, by and large, without both power and telecommunications. The Government and the community were trying to respond to that event. Could you just please give us a brief but broad description about the event and also in what form Reconstruction Authority arrived on the scene and started to be a part of the process?

GRAEME McCRABB: You've covered that pretty well. The phone services go down here pretty well straight after any power outage. Certainly we lost them for a long period of time through that period. RFS sent out some equipment in that stage where we became more involved—generators et cetera. Certainly a long time—not the RFS's fault, but to be responding to power, you need generators et cetera within hours, not days. As much as the response was really good from the RFS, I think the first lot of equipment that arrived was Saturday morning. The power outage was Wednesday night so probably well after 48 hours to get that stuff here, which is—we're a long way away from help.

As we moved into the food hamper part of it, the food hampers have always been a real challenge for us out here. It's been hard to coordinate. Reconstruction wanted them delivered. They gave us a list of about 60 properties with no household names on them, just the address. The addressing system is atrocious, to say the least, in our shire. I know there's been some work done at the moment to improve that, but it was miles off. We had places out here that had the same address and they are a long way apart. Reconstruction, under their privacy rules, wouldn't give us access to the applicants. Of the 65 or 67 or something addresses we had, I think we had issues with 30-plus of those.

There's certainly a number of people that are absolutely adamant that they had applied for hampers—no reason to question that—and they hadn't even made the list. We couldn't even track anything resembling an address to their name. I think there were probably another 20 or 30 that hadn't even made the list. Then, when we reached out for help—because we were after names or someone to come and sort it—we'd actually created a bigger mess by trying to deliver them. We couldn't get any support at that stage on the Friday afternoon. Definitely, as I can push very hard to get some help on the Saturday morning, that certainly wasn't going to come about. The suggestion was that, well, we just flat out refuse to deal with the hampers from there on. Members of Reconstruction, one clearly said that they weren't paid to hand out hampers, that wasn't their job. We felt we were really left swinging.

To try and fix the problem, the option that was given to us was that any phone calls I took, I could start to give hampers out and record that information over the weekend. I didn't directly take that up. I certainly helped out people in the town. I had access to the hampers, so I certainly helped out people that had reached out and asked. But really, for a paid service to be then relying on a volunteer agency to do their job over a weekend and take those phone calls, had that been really public—I'm quite happy to put our numbers out. We've done that many times in emergencies; that's not the stress. But to have a volunteer potentially inundated with phone calls because their system hasn't worked—and they were warned it wasn't going to work, we told them that addresses weren't going to be satisfactory—was disappointing.

They did learn from it. The next round of hampers that went out, they actually just gave them out as people registered in the town hall but yes, certainly frustrating. For an organisation that worked very closely with Resilience, I think it was at the time—so Reconstruction now—through the floods, it certainly didn't help relationships in that level of management.

I would say that we've had some support since with Reconstruction being out here, looking at some of the gaps from the power outage: the generator, as we've talked about Clayton; the lack of phone service; and the lack of ability to transform the hall. We can't put a changeover switch or power that from a generator. They've certainly been back out here to investigate that, and they're taking that to the next LEMC, which I think is this week or next week. Another part to that process, as you alluded to in your introduction, is that we are remote. Our shire struggles desperately to deliver services, and there's a huge reliance on volunteers.

The lack of planning and preparation that goes into it certainly hampers Reconstruction's ability to operate effectively in times of crisis. We've had a few chances to learn at Menindee, with fish kills, floods and power outages et cetera. I think we're up to three or four events where Reconstruction have been out here. There's improvement there, there's no doubt, but there's certainly a logjam coming back through our LEMC and its inability to deliver for locals. Locals really have very limited input into that. I'll just touch on the LEMC. That's now been combined. The Central Darling LEMC is now combined with the Broken Hill LEMC as a trial, and that'll be just another disaster. Any chance we had to have some input into LEMC conversations is just gone now. It was hard enough as it was. How did I go? That was a quick summary, was it?

The CHAIR: That was a pretty big download. I just want to go back. Power is gone. Somebody has made a decision that RA would get some hampers to town so at least people would have some—because people lost their power so everything in the fridge is gone. You basically need dry foods. Those hampers arrived in what form? Were they in a refrigerated container or just on a trailer? What was the nature of their arrival in town?

GRAEME McCRABB: No, they came out on a pallet delivery, so they were unloaded here at the local freight company. They're just pallets wrapped in plastic, so it's all dry food. Again, just to touch on that too, when we're talking about emergencies, I think we were taking the names of people on the Tuesday and Wednesday of that week, and we weren't getting to deliver them on the Friday. There's a real lack of urgency in the situation to be focused on a process rather than an outcome of getting hampers out.

The CHAIR: Yes. The hampers arrived and Reconstruction Authority had a list of addresses that they wanted you to get to.

GRAEME McCRABB: Yes.

The CHAIR: How had they developed that list at that time?

GRAEME McCRABB: People registered at the local town hall.

The CHAIR: Just to clarify, you were provided with an address, but not a name.

GRAEME McCRABB: Exactly.

The CHAIR: With all of that context, if everybody has got enough information, I'm going to go to the Deputy Chair, Ms Liza Butler on the South Coast.

Ms LIZA BUTLER: Thank you for your time today. You've outlined all of those issues that came across during the blackouts, and you said the Reconstruction Authority had come and spoken to you. Have they provided you feedback of what they will do moving forward to improve that situation?

GRAEME McCRABB: No, except the only thing they did then—they were a bit gun-shy then. They just took on to give the hampers out at the hall when people registered, which they did in the preceding days to fix. That seemed to work quite well, to be honest. They certainly took that on board. I think the other part that sits there is that, on Friday night at five o'clock, I was clearly told that there were no Reconstruction staff available to assist with fixing up, so we had to divert until the Monday, really. We had to keep telling people to the Monday. As Clayton touched on and I've alluded to, it's an emergency situation and we're trying to get food hampers out to people who want food hampers. It seems a really drawn-out process to end that far away. Admittedly, they've improved; there's no doubt about that. I think hampers would be seen as a poor source of delivering outcomes. I think vouchers to local businesses, local supermarkets and local fuel outlets, if you like, are a much better outcome. It certainly helps support the local businesses and gives people more choice. They might want milk or whatever and not so much buy food all the time.

Ms LIZA BUTLER: I didn't mean during the actual event but after the event to go back and assess it, and they worked out that that didn't work very well. Have they worked with you or the community to say, if that happened again, this would be the process and worked through something with you?

GRAEME McCRABB: No, and that's been one of our bigger criticisms. The after-action reviews that take place on all these events are—locals have no input at all into that. There's no-one who sits us down and says, "What worked and what didn't work?" We sit in a unique place where we don't have a Fire and Rescue, we have limited police and limited health service staff, so we have to run everything ourselves. It's very disappointing that

the after-action reviews, where we should be having a lot more say of what did work and what didn't work—we don't get any input into that.

Ms LIZA BUTLER: Is that an improvement that they could make—have anywhere you could put input and they came back to you and said, "In future, this is how we would do it," so everyone is on the one page and knows what's happening?

GRAEME McCRABB: Absolutely, but that falls back into the LEMC role in amongst that, so the LEMC should be leading that and driving that. That falls under the LEOCON's [Local Emergency Operations Controller] role. We're up to six LEOCONs this year, in 12 months, so continuity of LEOCONs and now the LEMO [Local Emergency Management Officer] as well. LEOCON consistency is a battle for us as well. The LEMC should be taking a much stronger lead role in that and bringing regional structures along with that, I think, from a personal point of view.

The Hon. SCOTT BARRETT: Mr McCrabb, I want to tease out a little bit more of what you're saying and check my inference is correct, because it seems to be there's a bit of a difference between what is happening on paper and what's happening on the ground. On paper it looks like there's some good stuff happening—you're getting the hampers up there, there are generators. The LEMC is more rigid now that it's got Broken Hill in it as well. But, on the ground, the generators got late, and I understand there are some issues there about who's responsible for checking them in and running them. We've heard about the issues with the delivery of the hampers. The LEMC seems to have little input from locals on that. Across the board there seems to be that difference between the on-paper response to the on-the-ground response.

GRAEME McCRABB: Yes, there's no doubt about that. We can look at the LEMCs and the LRCs [Local Rescue Committee], if you like. There's a huge disconnect if you look at, particularly, Central Darling Shire, with the fact that it's really hard to have local agencies involved. They have fire brigades in Broken Hill. Our police typically haven't lived in the region. Then we get focused on a process, so those organisations or committees, if you like, are judged by having minutes done and appearing to be doing a role, but we fail—and we continually fail—to deliver outcomes on the ground. The hampers are just one really small example of our inability. The fact that we can't actually just go and put a generator on the town hall and plug it in and power up the town hall—even if we have a power outage, where do we have a town hall meeting to explain to people—40 degrees and no air conditioning—in town for a meeting at really limited cost? That's not a financial impost; it's just an organisational failure.

The generators you alluded to with the Telstra generator, five hours to the minute we lose phones if the power goes off, and it failed again last time. We still do not know who's responsible for making sure that that generator starts. We've got no maintenance schedule for how that generator is being run. The LEMC has been warned multiple times. There's another email into the REMO [Regional Emergency Management Officer] this week. I know particularly Roy—I don't know if he's on today—has been right across that. The last power outage, we actually had to go to our local member to tell him that we had no generator working again. That's a failure of that LEMC structure to actually deliver services on the ground.

The CHAIR: Speaking of Mr Butler—that's a nice segue—over to you for questions.

Mr ROY BUTLER: G'day, Graeme. How are you?

GRAEME McCRABB: Good, Roy, thank you. How are you?

Mr ROY BUTLER: Good, mate. I was interested in the post—the wash-up basically—review of the incident and the learning from it, but from what you're saying, it's not something that took place?

GRAEME McCRABB: No. The best we can do, Roy, from a structure and from a process point of view is we have some input back through the RFS—they are focused on our combat roles here in town, which is rescue, fire and soon to be on water, obviously. They get, as agencies do, that's their role and that's what they take back. As a community, I feel that we should have a meeting with the LEOCON or REMO, or both, on how that should run—and reconstruction, possibly. That should be coming to the community four, five, six weeks after the event, sit down, whiteboard-type stuff and write up what works, what was successful and what wasn't. Then they should be taking that stuff back to an after-action review. That certainly doesn't take place. I look at Broken Hill, maybe, or at Bourke or some of those places where the police and the health service and the fire brigade people and all those agencies are actually members of those communities, so they have a natural local input into those reviews, whereas we really don't have anyone locally from Menindee on that.

Really, apart from Greg at Wilcannia, we hadn't had anyone for the Shire, and we know the width and breadth of the Shire from White Cliffs to Menindee to Ivanhoe—different issues, different personalities, different capabilities within those communities. Each community needs to have some input back into that. We really

appreciate Clayton and yourself, Roy, being involved in the parliamentary inquiry into the power outage. It's helpful for the community to feel that they can put submissions in and have a say. I think there's a healing process or an opportunity for people to let out what's stuck inside and what they want to say. That side of it's really good for the parliamentary inquiry, but as far as that flowing back to outcomes on the ground through REMCs [Regional Emergency Management Committee] and LEMCs, it's just not happening.

Mr ROY BUTLER: Interestingly, for the rest of the Committee's awareness, there are a stack of different reviews that agencies have done. Out of that, there's obviously Federal, AER [Australian Energy Regulator], AEMO [Australian Energy Market Operator]—there's all sorts of reviews being done into the incident from different perspectives that you're just not plugged into them. There's no formal linkage between Menindee, and I'd say the same would be for Wilcannia, Tibooburra, Milparinka, Packsaddle—same sort of thing.

GRAEME McCRABB: Yes, absolutely. I'd probably speak on behalf of all communities, really. I know my experience is Menindee, but certainly it's reflected across—you know, I speak to Justin a lot through some of the RFS stuff and the water stuff. Clearly, we're not alone in this part. And it's hard to deliver services, we know that. But if we understand that it's hard to deliver services, then we need to be better at finding different ways to do it.

The CHAIR: For anyone who's watching at home without context, the Central Darling Shire Council is 100 kilometres—

Mr ROY BUTLER: The size of Tasmania and a rate base of 2,000 people. Five different communities, four lots of pools, four lots of footy fields—no, three lots of footy fields.

The CHAIR: But it's an hour from Wilcannia down to Menindee?

Mr ROY BUTLER: An hour and a half, Wilcannia to Menindee.

The CHAIR: And then from Wilcannia, which is where the council is based, up to White Cliffs?

Mr ROY BUTLER: Some 90 kms.

The CHAIR: It's a big area.

Ms SUE HIGGINSON: Hi Graeme, it's good to see you.

GRAEME McCRABB: Likewise.

Ms SUE HIGGINSON: I'm curious, if we were in a similar situation in three weeks time, what do you think—how would you go? Do you think that there is anything that you could rely on to more successfully achieve what the ambition and the mission was to achieve?

Mr ROY BUTLER: Don't jinx us, Sue!

Ms SUE HIGGINSON: This is preparedness in action.

GRAEME McCRABB: It has been pretty good, Roy. There's a jinx for you! There's some lobbying for some small generators. Roy's office certainly played a big role in that. We have an extra twenty-odd generators here in the community, which is helpful, to share that sort of resource—that's some fridges et cetera. That's slightly better. The generator at the Telstra base is there, but there's no guarantee it's going to start, as we said before. As a community, we actually went and started it ourselves last time. We overrode the automatic start to get phone service back for our community and get phone service for the health service. We'd already put our rescue vehicle up there using the Starlink in our rescue vehicle, which RFS had supplied. That was the only comms that the health service had until we forced our generator to start.

In that case, the health services were no more improved. I still can't get the hall swapped over for power, I can't put a generator into that, and I've got no process or responsibility. If we had another power outage again and the generator didn't start at the Telstra base, the only person I know that I would contact would be Roy. We'd have to go to the fire sheds, start one of the vehicles up, use the Starlink, and I'd be texting Roy. And he'd respond, but it's not his job. I don't think it's my job either, but we're happy to do it if that's the plan that is put in place. We'll go and inspect a generator straight away and we will tell whoever needs to know that it's not working. But it's a pretty informal process.

The disappointing part is we're still in that same boat. We've spoken to Reconstruction about our local service station. The generators we've got in town and the generators that most people have now are the cheaper, camping-style ones that rely on unleaded fuel. Unleaded fuel doesn't last very long. I think anyone who's had experience with that knows that unleaded fuel just isn't kept on-hand by people. When the power goes out, we still don't have a changeover capability for our local service station, so we still don't have unleaded fuel available

for the community. We either have to find a way—we did hardwire the generator up last time, or we've been asking for some help to get the local service station to make unleaded fuel available through grants or low-interest loans. But, yes, we haven't advanced at all from the last event.

Ms SUE HIGGINSON: When you said the local emergency management teams are merging, is that something you want to reverse? Is that something that you've talked to the Reconstruction Authority about in terms of the effectiveness during a disaster?

GRAEME McCRABB: I've certainly spoken to the REMO. I spoke to the former LEOCON. I've been in touch with Roy's office. Roy will be well aware of it. Yes, it just doesn't make any sense. The only reason they've done that, from the outside looking in, is that they get very few agencies to the Central Darling LEMC meeting, so they're failing in that part of that process. The way to fix that and make it look like it's working is to join with Broken Hill to maybe have it with more agencies, but it actually doesn't—well, it definitely won't improve outcomes on the ground, which is what the whole intent of LEMCs: to actually create outcomes, pass on State Government money and State Government policies to the communities and pass back the messages of not working. We'll be swallowed up in the Broken Hill one and have no say at all.

Mr RICHIE WILLIAMSON: G'day Graeme. Richie here, mate.

GRAEME McCRABB: I think we've met, Richie, haven't we?

Mr RICHIE WILLIAMSON: Yes, I was out there with them. Learned a lot that day.

The CHAIR: Just to be clear, Graeme, do you know everyone?

Ms SUE HIGGINSON: Graeme knows all of us.

GRAEME McCRABB: No, not quite. I did write it down. So I've got yourself, Roy, Scott, Sue and Richie—were the ones I had that I'd met.

Mr RICHIE WILLIAMSON: Yes, I was out there that day. First time it rained in Menindee for 40 years, I think. I'm pretty sure you blamed me for it, mate.

GRAEME McCRABB: No, come on back. We want you back.

Mr RICHIE WILLIAMSON: Graeme, I think I'm taking from your evidence here—correct me if I'm wrong, and I know you will—that the problem may stem from a role delineation type of situation in that the SES do floods, Rural Fire Service do fires, but nobody was actually planning for a widespread blackout caused by a thunderstorm or a windstorm or what it was classified as. Is that a fair summation? If not, tell me. What have we learnt since—when was it, Roy?

Mr ROY BUTLER: October.

Mr RICHIE WILLIAMSON: There you go—12 months ago.

GRAEME McCRABB: I think that is to some degree. But, again, we're looking at—I'll touch on this and try and be really diplomatic. But if we look at SES as a flood combat agency, their capability is really reduced out here. We're looking at multi-agency responses in answer to that, which is clearly not going to work down the track. But if you look at Menindee now and White Cliffs and Tilpa and Pooncarie, which is 100 kms to the south of us, that is all RFS. Fire and rescue—volunteers are doing the rescue under the RFS banner. We have limited resource from volunteers and it's that ability then of the LEMC to function with those key groups, which is really the RFS, I suppose, in that place.

We run a small sort of group here in town. Fiona has made it onto the new council, which is really good, as an appointed member. But Fiona, Michelle, the land council involvement, the RFS—we have our small subgroup that we just run ourselves and we make do with what we can and we ask for what we do. But if we had proper plans in place—it doesn't matter if it's a power outage that has caused the phones to go down or whatever. We don't actually have—we should have, but we don't—a plan for communications failures in the community. That could impact on fish kill clean-ups or a fire with the hall being a refuge centre, which it is not capable of now without a generator.

There are some broader plans that sit under the LEMC banner that should be addressed. Then those plans could be adapted on the run, if you like, in an event that we're not quite planning for such as a power outage. We don't have the opportunity to revert to our communication plan. We don't have the opportunity to revert to—a small lack of power or any of those things. It's just that there's nothing there to start with at all, and then the community gets left dealing with it basically on their own. Then that creates a lot of frustration. Certainly, from a reconstruction point of view, they come to a tired, worn-out community. We've seen it in the floods. We've seen it in the fish kills. And we certainly saw it in the power outage. By the time Reconstruction get there, if we haven't

had good preparedness into it, they come into—I'm trying to find the right word—just a total cluster of issues. They're trying to pick up the pieces from poor pre-planning going into any event, at the moment.

Mr RICHIE WILLIAMSON: The second part of my question, through you, Mr Chair, is what have we learned in the last 12 months?

GRAEME McCRABB: I've learned that the LEMC hasn't improved from what it was for the previous five years, to be honest.

Mr RICHIE WILLIAMSON: No, that's what we want; we want honesty, mate.

The CHAIR: Graeme, I'm sorry to keep going back here; I'm just struggling with it a little bit. The hampers arrived on the ground. Can you talk me through the human personnel that was wearing a Reconstruction Authority badge? Number one, did they turn up with a badge or a shirt or some sort of recognition so you could go, "That's the Reconstruction Authority over there"?

GRAEME McCRABB: Yes, they were at the hall. Certainly in that process, that was pretty clear. To be honest, the people that were organising the hampers—it was all done by phone and email. That was done separately to the stuff in the hall. I wasn't involved in the hall stuff or community meeting stuff per se. But, yes, from the little bit I saw—because the fire shed is next door, I was there a bit—it was quite clear to see who had what roles. Again, like I said, I wasn't involved in that process exactly—just the fallout from not being able to deliver hampers. I'd still come back—I think the hampers don't work, to be honest. It takes too long to get them out here. It's a clumsy process to start with. But, yes, just the lack of support was really disappointing and detrimental to relationships. I don't mind calling a spade a spade. There are two or three people who got very clearly told about their efforts. We had four or five people spend six hours trying to deliver hampers that ended up being a total mess. There's some frustration in that.

The CHAIR: Can I just clarify? There were four or five people from the Reconstruction Authority on the ground?

GRAEME McCRABB: No, the RFS volunteers that went out to deliver the hampers.

The CHAIR: Do you know how many Reconstruction Authority people were on the ground at the hall and, in part, doing the hamper thing?

GRAEME McCRABB: Yes, there were a number of people at the hall, so there probably could have been eight to 10 maybe in there. There certainly seemed quite a few. The process—they all talk about the time, but I think that it wasn't too bad for people to be in the hall. To be honest, I thought that side of it was reasonably well handled. I think some of the conversations around eligibility and people that maybe applied for some of the funding—it was difficult for people that had farms and stuff in companies and trusts. That was really hard for them to prove where they lived. The suggestion today was maybe the voting roll. Imagine the privacy issues around that, but the voting roll could be a way to actually identify people as being there in community.

If they're not on the voting roll, they've got an opportunity to show a power bill or something like that. But certainly for some, they found that to the point of being impossible; they didn't even bother to continue with trying to register. I think there was a \$250 voucher at one stage, and then the company one. There were some issues around that, which they probably should have addressed themselves or highlighted, but certainly that was one that was brought up with myself. Again, I didn't actually bother with any of that help. We've got a generator, so we weren't too badly impacted. It was just more time actually doing work around the community, to be honest.

The CHAIR: Again, I'm not looking to string anyone up, but it's going to sound like it. They were on the ground and available, but at 5.00 p.m. on Friday afternoon?

GRAEME McCRABB: Yes, no cigar then. They didn't want to have a bar of me at five o'clock. This is a frustration of mine. I was actually out doing the flying doctors run. We do a roo run on the airstrip. I'm actually standing at the airstrip waiting for the flying doctor plane to fly in, which is a volunteer job, and I'm being told by a Reconstruction staff member that he's not paid to deliver hampers. You can imagine how that conversation ended.

The CHAIR: Did Reconstruction Authority personnel stay out in Menindee, or did they stay back in Broken Hill?

GRAEME McCRABB: No, Broken Hill. But I understand there was very limited on the Saturday morning. I begged and pleaded. Had they have sent someone out Saturday, it would have been a much better outcome, and I would have been a bit calmer about the whole process. But we couldn't get anyone to come to Menindee on Saturday to try to sort out the hamper mess. It extends it out for another three or four days before

it's sorted. We're talking about emergency food, and we shrug the shoulders on Friday night and say, "We'll see you on Monday." It's back to front.

The CHAIR: Were they back in the hall and back on the ground in Menindee on Monday?

GRAEME McCRABB: I think it was Tuesday, in the end. I'd have to check that, to be honest.

The CHAIR: This might be difficult. Do you have any awareness of what was happening at Wilcannia and White Cliffs at this time, in terms of the Reconstruction Authority having a presence on the ground?

GRAEME McCRABB: They definitely were at Wilcannia, but I'm not really across that. Roy would probably be better to ask on that one. I'm not sure about White Cliffs—whether White Cliffs had to come to Wilcannia. That's in the back of my mind, but I'm certainly not in a position to comment on that.

The CHAIR: Graeme, thanks so much again for your time. We really appreciate it and everything you do out there in the community. You will be provided with a copy of the transcript of today's proceedings for corrections. Following this hearing the Committee may develop supplementary questions that we may send to you. If we do that, we ask you to try to turn that around in 14 days. I know you're busy. If that's a problem, please touch base with us and we can work through that.

GRAEME McCRABB: I'd really like to thank everyone for the opportunity to speak, and for the questions. They're all, clearly, questions that are well thought through and that fit into the topic. And honestly, as much as there's a bit of time involved, for the rural communities to be able to have these opportunities is really, really appreciated. I'd just like to thank the whole Committee for that.

The CHAIR: We pass on our thanks to whoever lent you the tie. You can give it back to them now.

GRAEME McCRABB: You don't want to see what I'm wearing down low, to be honest.

The CHAIR: Cut the broadcast! We'll resume at 3.15.

(The witness withdrew.)

(Short adjournment)

Ms KYLIE MACFARLANE, Deputy Chief Executive Officer and Chief Operating Officer, Insurance Council of Australia, before the Committee via videoconference, affirmed and examined

The CHAIR: I welcome our next witness. Please note that we will be taking photos and videos during the hearing. We may use these for social media. If you have any concerns about that, please let us know and we will oblige. Could you please confirm for us that you have received the Committee's terms of reference and standing orders that relate to the examination of witnesses.

KYLIE MACFARLANE: I have.

The CHAIR: Would you like to make a short opening statement before we begin questions?

KYLIE MACFARLANE: Yes, please. The Insurance Council of Australia is the representative body of the general insurance industry in Australia. Our members represent approximately 95 per cent of total premium income written by private sector general insurers, so that's everyone other than the life and the health insurers. Insurance Council members, both insurers and reinsurers, are a significant part of the financial services system in New South Wales and nationally. Insurers are second responders to extreme weather events. We follow behind response-and-recovery organisations and agencies and utilities. Insurers go about the important work of supporting the recovery of communities, which typically lasts much longer than the event itself. The Insurance Council of Australia welcomes the Committee's review of the NSW Reconstruction Authority.

The May 2025 New South Wales east coast severe weather event, or what we call Cat 253, tested New South Wales' recovery arrangements and exposed strengths and gaps in coordination, hazard data, community engagement, the use of reconstruction powers and funding mechanisms. The industry is a primary partner in recovery and claims management. Insurers' experience provides essential, operationally focused insights into how reconstruction arrangements function in practice. The Mid North Coast and Hunter floods saw 14,481 claims, with a total claims value of \$261.4 million. Of this, over 57 per cent of the claims have now been closed as of October and \$131.2 million has been paid to policyholders or invested in repairs on their behalf. To break that down a bit, residential claims are the overwhelming majority of the claims received, with 13,370 claims, and there were 1,111 commercial claims.

The principal recommendation arising from our consideration of the terms of reference is for the NSW Reconstruction Authority and the Insurance Council of Australia to jointly agree to recovery arrangements, which we would do via a memorandum of understanding. These arrangements should set out the principles and intent for preparedness, and the recovery and resilience arrangements between the organisations. That will help improve operational efficiency, ensure vital insight is incorporated into decision-making and effectively communicate and engage with communities. Recovery arrangements should include data-sharing protocols and communication protocols, the creation of open data regimes for hazard and exposure information, and the insurance industry supporting market impact assessments for mitigation projects, including buyback arrangements. I look forward to discussing this with the Committee this morning.

The CHAIR: In your role, do you have any line of sight over the landslip event around Newcastle?

KYLIE MACFARLANE: The Insurance Council and insurers have been involved with the landslip in Toronto.

The CHAIR: Sorry, not Toronto.

KYLIE MACFARLANE: In New Lambton, apologies. Got my suburb wrong.

The CHAIR: I just want to make sure we're talking about the same thing, that's all.

KYLIE MACFARLANE: That's okay. It's only been one. In New Lambton we were engaged early on with the council. As I understand it, council is still working through determining whether or not residents can rebuild on that land. At this stage, it's a council decision. Insurers are waiting for that decision to be made.

The CHAIR: In some of those instances, the block of land—the dirt, the grass, the ground—that people own or owned has gone. It has slipped away. It is no longer there. They now, for all intents and purposes, own fresh air, as plotted on GPS. Is that insurable? Is that covered by insurance, if the ground turns to fresh air?

KYLIE MACFARLANE: When you're insuring a property, you're insuring the property—the physical building and the built environment, if you like. You're not insuring the land underneath the house. At the moment, this is a council issue. We will be directed by council whether or not those properties can be rebuilt on the blocks of land that were or were not there. But, certainly, the land itself is not covered.

The CHAIR: We've had a number of submissions come in from the community about that particular event. Obviously the Reconstruction Authority have declined to take that on and left it in the hands of council. I was just wondering, from an insurance perspective, how you're dealing with that. I appreciate that you insure the built product on the land, not the land.

KYLIE MACFARLANE: Yes, we do. That does require a council decision at this point.

The CHAIR: If members will indulge me, this is a little bit of a segue. It made me think about it because in your submission you talk about clarity around particular properties that are considered for buyback, the timelines and offers, compensation approaches, and where buyback processes are slow sometimes households can be rebuilt and then bought back, which seems like a waste of everyone's time and money. Is the Reconstruction Authority getting better at all of that over the many instances we have seen? Are they now more proactive or expedient in terms of declaring a property to be on the buyback list so we don't waste time and energy rebuilding?

KYLIE MACFARLANE: We've certainly seen an incremental shift in this process. I think what we all learnt from Lismore is that the process does need to happen with expediency. What we would like to see is that we're having those conversations before an event even happens so that, when the Reconstruction Authority determines that buyback arrangements need to be in place, that conversation has already happened at an insurer level and there's transparent documentation around how they make that decision, not just from an insurance perspective, but also for the communities in which they're operating, and that decision is then dealt with in an expeditious way. What we saw in Lismore was that it took quite some time for New South Wales to make decisions about whether or not it would do a buyback and house raising program, which meant that a lot of people had already moved through either the claims process or relocation process or a sale process of their home privately. It became more complicated in an already traumatic situation. We are seeing an incremental increase, but we do see that there are always areas to improve.

Ms LIZA BUTLER: Good afternoon and thank you, Kylie, for joining us this afternoon. Insurance is one of my pet things, especially in disaster-prone areas. If there is mitigation works undertaken by the RA or funded by the RA, do they talk to you and do you have an open dialogue with them about that? How would that affect household insurance? Would it assist in reducing their payments?

KYLIE MACFARLANE: This is an important conversation that we have with recovery agencies but also with NEMA through the Hazards Insurance Partnership. What we see as the most effective mitigation, when we're talking about insurance premiums, is the construction of flood levees, dams and basins or buybacks. House raisings will work in some situations but, where the risk is too high, house raisings may not be the optimal solution. We do have those conversations with recovery agencies in New South Wales as well. We think there are a number of things that could be done, including having the joint arrangements with New South Wales, but a really key one is creating a standard open data regime for hazard and exposure information.

This makes sure that we've got consistent formats, which include geospatial standards, that the update cycles are aligned and that there are licensing terms that enable insurers, councils and the private sector to integrate hazard data efficiently. This is actually about data. Where mitigation has taken place and where that data is able to be provided, insurers are able to utilise that authoritative source of information to reprice insurance in that area. If we take house raising as an example, floor heights—which insurers typically don't have—are an important consideration for insurers to have. Where floor height data can be provided through an authoritative source, where it's codified in a way that it can be ingested by insurers, they will be able to take that into consideration, as an example.

Ms LIZA BUTLER: Can I give you an example of that? You probably won't know where it is, but Lake Conjola on the South Coast has flooded every year for the last 12 years since the lake closed. Prior to that, they had dredged a channel. There are houses there that have never flooded. They got a flood certificate from council saying they've never flooded at their height of their house, and their premiums do not come down.

KYLIE MACFARLANE: Obviously, we measure risk, and the risk is typically provided to us by the local council. The authoritative source of flood maps comes from the LGA and that is fed into the National Flood Information Database, which is the flood database that insurers utilise to price insurance. They do use other sources of flood information as well. We do require those authoritative maps where they're available. If they're not available, insurers will go and seek other sources. While they may not have flooded, the risk of flooding may still be the same. It's just that either that risk hasn't been realised on that property or maybe the council's flood maps need to be looked at.

The Hon. STEPHEN LAWRENCE: Thanks, Ms Macfarlane, for coming along; it is much appreciated. I have one question. I was wondering if you could give us a bit of a sense of the work that you do with the Reconstruction Authority in relation to long-term insurability of people in disaster-prone areas.

KYLIE MACFARLANE: Our conversations, like with the previous question, are probably not as consistent as they could be at this point in time. What the Insurance Council has done, through the Flood Defence Fund submission that we made prior to the Federal election earlier this year, is we actually mapped out 24 key priority catchments across the east coast of Australia. Many of those sit in New South Wales. We called for specific mitigation investment to be made into those 24 catchments. That investment included flood levees, buybacks, house raising and other types of household mitigation. We've been working with governments at all levels to talk through that Flood Defence Fund and also going through our ongoing advocacy around resilience investment. However, having consistent discussions with the agency authority is fundamentally important, particularly before an event actually happens. The more we can do to plan and adapt prior to the event happening is going to either reduce the impact of that event or at least ensure you have a community who is well educated on the impacts and what they need to do at a household level and what councils will do or the State will do at a community level.

The Hon. STEPHEN LAWRENCE: Thank you, that's really helpful.

The Hon. SCOTT BARRETT: Someone stole my thunder a little bit earlier, but I want to talk more about the preparation works and mitigation works and what impact that has, specifically when we look at the Northern Rivers where there have been millions and millions of dollars spent on apparent mitigation and preparation works since the floods. What impact has that had on premiums for the people who live up there?

KYLIE MACFARLANE: Sure. I will point out that the terms of reference of this Committee isn't about insurance affordability and availability. However, we continue to work with the agencies and those communities on their insurance affordability and availability. Where the risks have been materially impacted, one would assume that they've seen that in their insurance premiums, if we've received the data that supports that. If we don't have the data, then it's very difficult to actually make any change to the risk profile, and that data does need to come from authoritative sources.

As I mentioned before, the key mitigation programs that we see having impact on insurance premiums actually happen at a community level, not at a household level, and that includes targeted buybacks, dams, levees and basins. Other mitigation may be in place, like house raising, and as I mentioned before we would need to see appropriate data to be able to factor that into insurability. What we will always advocate for at a community level is that people shop around, and that they actually speak to multiple insurers or get online and run multiple quotes. It is a very competitive market. There are a vast number of insurers in Australia insuring homes, contents, businesses and cars, and it's really important every 12 months to go through that process of looking at what insurance you need and then looking at who is going to provide you the best cover at the right price.

The Hon. SCOTT BARRETT: I will say, Ms Macfarlane, my line of questioning is not to question the insurance industry but the effectiveness of the preparation and mitigation works that has been happening. Would we see a general decrease in premiums in that area because of the mitigation work that has happened? Sorry, have we seen that?

KYLIE MACFARLANE: Right now we don't have an authoritative database that actually shows us the impact of those changes. As I mentioned before, doing the mitigation is one thing; re-running the studies to demonstrate the impact of that mitigation is the essential next step. That could include redoing flood studies to take into account the mitigation that has been put in place. It may be about building up authoritative sources of floor-level data for communities or other data that insurers will need to ingest into their pricing machines.

The Hon. SCOTT BARRETT: Which, as yet, has not happened.

KYLIE MACFARLANE: Typically what we would see is that there is a process it goes through. The mitigation investment itself takes time, and then the study itself takes time. A study doesn't get turned around overnight. It can take 12 months to do a good comprehensive flood study. Funding needs to be available, and I can't comment on funding availability. I can take on notice where we have received updated flood mapping, but I don't have that information to hand if there has been any at this stage.

The Hon. SCOTT BARRETT: That would be really useful. My other question is I'm wondering whether as an industry there are any actions that you can point to that would see a reduction in those premiums as far as preparation work.

KYLIE MACFARLANE: Preparation work are the four I talked through before: building appropriate flood levees—so the height of the flood levee is important—building basins and dams where they will have impact on the floodability or the height of flood and impact of flood for particular communities, and where buyback arrangements are being put in place.

They are the four most effective mitigation programs. Where the risk is perhaps not as heightened, so maybe it's a 1 per cent annual exceedance probability [AEP], in those situations house raising may be a really good mitigation. But that may not be the case if they're in a 2 per cent or a 5 per cent annual exceedance probability area. It will depend on the mitigation put in place, but they are the four most effective, from our perspective.

The Hon. SCOTT BARRETT: Thank you. I have more, but I can come back with supplementary questions.

The CHAIR: Mr Butler?

Mr ROY BUTLER: I have no questions for this witness, but thank you very much for making the time to come and speak with us.

KYLIE MACFARLANE: It's a pleasure.

Mr RICHIE WILLIAMSON: Ms Macfarlane, thanks for joining us today. You've mentioned the word buybacks a lot. I wonder if you might be able to put some context around the buybacks. How have you formulated what I perceive to be a pretty positive stance on buybacks? I'm assuming that's out of the Lismore, Richmond kind of experience. Could you give the Committee any insight into that policy of yours?

KYLIE MACFARLANE: We completely understand the complication of buybacks. It is an emotional decision to move targeted homes out of the community to a safer location. However, we also recognise where you have homes that are flooding year on year or, like in the Mid North Coast flooding event earlier this year, that have flooded three times over the last five years, then you need to start thinking about whether or not it is in the best interests of that home, homeowner, family and, indeed, the broader taxpayer and community to be rebuilding that property each time it floods. We would typically see buybacks being introduced where there is exceptionally high flood risks, so that would be a 2 per cent or a 5 per cent annual exceedance probability.

We know 242,000 homes on the east coast are at a 2 per cent or 5 per cent AEP; and I'm happy to take on notice to get you the New South Wales number that are in that range. Really, the key solution left for many of those homes is to be bought back and relocated. It's difficult. Australians love to live by water. However, when we put ourselves at risk repeatedly, we do need to start thinking about what is the best thing for that homeowner and for their community.

Mr RICHIE WILLIAMSON: I have a couple of follow-ups, if I may. The Reconstruction Authority's policy is this Government's policy; in fairness, the previous Government's policy on buybacks was voluntary. Have you any comment on voluntary buybacks versus "We're going to buy you back"?

KYLIE MACFARLANE: Voluntary buybacks certainly allow for a community-led response and allow a homeowner to make what we would hope is an informed decision. The downside of that is when you have voluntary buybacks, you may still be left with very at-risk homes in at-risk locations. Sometimes in those areas, if you are going to do voluntary buybacks, then there does need to be a plan B, and that plan B could be house raising instead. However, you need to think about the suitability of house raising to ensure that it's appropriate, that we're not raising homes 14 metres into the sky and that the liveability of that residence is still in place as well. But what can't continue is for that home to continue to be at risk to the level that it is right now. Compulsory buybacks certainly are efficient in that they proclaim who will be bought back. However, where you have an authority and where you have a government who wants to lean into community-led response, voluntary buyback arrangements will provide you with that opportunity. But in the most extreme cases, sometimes I think compulsion is a necessary step.

Mr RICHIE WILLIAMSON: Thank you for the answer. On the voluntary buybacks, in my electorate I've literally got streets that have seen buybacks but the next-door neighbour hasn't got a buyback. Is there any data on the insurance premiums of that policy for the house that hasn't been bought back?

KYLIE MACFARLANE: Typically, what we would find—and I can certainly send through some of the information from the Flood Defence Fund—is that often these homes are in lower socio-economic communities, particularly where they're at extreme risk, and they don't have insurance.

Mr RICHIE WILLIAMSON: Fair call. Understood.

KYLIE MACFARLANE: There is an argument to say that when you do a buyback, you're actually deeming that land uninhabitable. If the land is uninhabitable, then what are the consequences of that? At the moment, if that home remained, they could still purchase insurance, if they were willing to pay the price of the risk. But if it's been deemed uninhabitable land, what are the flowthrough impacts of that to the homeowner and to the community?

Mr RICHIE WILLIAMSON: Ms Macfarlane, do you know if a buyback parcel of land is automatically deemed uninhabitable from an insurance point of view?

KYLIE MACFARLANE: If a parcel of land is bought back, the house is removed and there's nothing there to insure. If a buyback is offered and refused, the insurer isn't necessarily aware of that. We don't have a database of homes with a buyback. But it's that kind of open, transparent data that is required. We need to require it at a local level as well, because people need to be able to have an informed conversation with governments at all levels around their risk and around what options are available to them.

The Hon. SCOTT BARRETT: Can I go back to the question about the impact of those buybacks on the non-bought back homes? Taking away the assumption that the person can afford insurance and does have insurance, who will determine the impact of those buybacks on the risk? Is that something that you'll do or, again, are you waiting for council or someone to do an assessment and new flood plans based on the removal of that house, the earthworks in that yard et cetera? Do you wait on that to get done before you would adjust the premium? I understand not you, but as an industry. Do you wait on some new, updated flood plan advice?

KYLIE MACFARLANE: I might have misinterpreted your question, so I'll answer what I think the question is. If a buyback was offered and you took that buyback, then there is no insurance on that property anymore. It's gone; you don't own it anymore. You go and buy a new house somewhere else and you take insurance out on that property. If a buyback was offered and you turned it down, the insurer doesn't necessarily know that. They will continue to price risk as it is currently stated on the flood maps and the flood information that they've got available for that site.

The Hon. SCOTT BARRETT: Sorry, I was talking about the house that wasn't offered a buyback. The hydrology of that land has now changed because there are four houses, four driveways and four gardens that aren't there anymore. What impact will it have on those premiums and how does that decision get made?

KYLIE MACFARLANE: Again, it comes down to whether or not we've been provided with updated flood mapping and what other hydrology studies have been done in that area that insurers can access. If there is updated authoritative data, that will get fed in and the insurer will price that risk according to what that data tells them. If there is no updated data, then they will either procure private data themselves or they will utilise the data that is available, which may or may not include those changes.

The CHAIR: I have one final question. I know we're pretty much out of time. When the insurance companies are trying to respond to an event and understand the size, shape and scale of it, is your submission saying that the work of the insurance company can be accelerated and happen quite quickly if that information gets entered really accurately and really quickly? So there are two questions: Is that what your submission is saying and, if that's true, who is going to do most of that work so that you can map out exactly the size and scale so that you can respond quickly and process quickly?

KYLIE MACFARLANE: As per our submission, we get that information from the Reconstruction Authority. What we found during the North Coast event was, we were getting information; however, it wasn't consistent and it wasn't necessarily in the same format or in a machine-enabled format. If you think about insurance companies, they're data ingesters. They need to take that data and ingest it into their pricing machines or into their claims engines or into their response engines. Where we're getting a lot of different information and it's not mapped to the same data schema—and it's a data schema that can be utilised not just by insurers but by utility organisations and other levels of government—then you're creating a barrier to speed.

The quicker we can get that uniform data, the quicker we can ingest that data and be having conversations with the Authority to say, "Right, we recognise from your data that we won't be able to get into those communities because the road's out. So we're going to do some social media messaging to those communities to say, 'Hey, get online and lodge a claim, but we won't be able to have loss adjusters in your area until the road reopens,' or, 'We're going to triage this area first because it looks like that's where the worst impact has been. We're going to send teams in there quickly once the water recedes,'" for example. It allows us to do that situational awareness better and more expediently.

The CHAIR: If RA is inputting that information and it's not in a format that can be ingested, is that an IT software problem?

KYLIE MACFARLANE: It could just be the data schema problem. They're probably getting that data from local councils, and local councils—and I don't know the answer to this—may not have a standardised format within which to provide that data. It could all be coming on an Excel spreadsheet, for example, but as long as it has the same fields with the same data in those fields, and those fields have been defined, then a machine can pick that up and go, "I get what the data dictionary tells me, and I understand the data schema," and take it in. But

where every input is different and isn't meeting a format or a pro forma schedule, then there's lost time in actually trying to ingest that information. In fact, we may miss things. So from our perspective, yes.

The CHAIR: That sounds like an opportunity.

KYLIE MACFARLANE: Yes, absolutely.

The CHAIR: You've indulged us for an extra couple of minutes, and I really appreciate that. Thank you for appearing before the Committee today. You will be provided with a copy of the transcript of today's proceedings for corrections. You did take a couple of questions on notice. We will send to you that portion of the transcript to give you the context of the question that you took on notice, so you don't need to worry about that. We will provide you with all of that information. We, as a Committee, may also develop some supplementary questions that we send to you. In both instances, we would ask that you return the answers within 14 days, if that's possible. If your workflow prevents that from being possible, please talk to us about that.

(The witness withdrew.)

The Hon. DAVID ELLIOTT, Chief Executive Officer, Institute of Public Works Engineering Australasia NSW and ACT, before the Committee via videoconference, sworn and examined

Mr TIM MACKNEY, Board Director, Institute of Public Works Engineering Australasia NSW and ACT, before the Committee via videoconference, affirmed and examined

The CHAIR: I welcome our next witnesses. Please note that the Committee staff will be taking photos and videos for use on social media. If you have any concerns about that, please let us know and we will oblige. Could you confirm that you have been sent a copy of the terms of reference and information about the standing orders that relate to examination of witnesses?

DAVID ELLIOTT: We certainly have.

TIM MACKNEY: We have.

The CHAIR: Thank you both. We obviously have your submission, which we appreciate, but would you like to make a short opening statement before we begin questions?

DAVID ELLIOTT: I'll make a few remarks, and then Tim will maybe make a few remarks. Thank you very much, Mr Chair, and to Messrs Lawrence and Murphy for allowing us to appear. This is obviously an inquiry that we've got a significant amount of interest in. To put that in context, many members of the Institute are responsible for disaster management in their respective local government areas, and, of course, the Institute has a standing and long-term relationship with the transport department as well. We've worked very closely with all government departments in relation to the Reconstruction Authority. We had a great relationship with the former Commissioner as well, who we certainly provided feedback to over the course of his tenure there.

I think I'll leave any further comments in response to lines of questions, but if I was to provide you with a high-end opening remark or observation, it would be that we're quite comfortable with the way the Reconstruction Authority is working. We certainly concede that it's early days, with only three years in it, so maybe representations would change if this inquiry was occurring in, say, two or three years time. But, to date, we've been quite comfortable with the work. There are a few standouts, which we'll address over the course of questioning.

TIM MACKNEY: Thank you for the opportunity for us to present. Following on from Mr Elliott, probably the only thing I'd like to point out is that certainly councils and local government—we're involved in disaster management at all sorts of levels, from preparedness right the way through to the actual response, and then following on from that through to recovery as well. While we are certainly representing the Institute of Public Works Engineering, there's a broader cross-section, if you like—and some of that comes out in our submission—right across council where we have other staff members and other interplay with council functions and responsibilities, including closer interfaces with our communities and the recovery through community groups and those sorts of things, which hopefully we'll also have a chance to talk about.

The CHAIR: Thank you both. I might lead off with a question. It's topical because we just had the Insurance Council appear with us. I'll open it up to both of you. Are you aware of any works that have been undertaken, whether that's a levy, a retention basin or other such? Are you aware of any works that have been proactively undertaken in recent years, since the introduction of the Reconstruction Authority in 2022, that have led to a community becoming more safe and, connected to that, their insurance premiums being suppressed or reduced?

DAVID ELLIOTT: I'm not aware of any, but that would probably be a question for Tim.

TIM MACKNEY: There's probably two parts to this. One would be looking at council-owned assets, and the other would be looking at assets owned by individuals within the community. I think we've seen examples in both of those areas where resilience works, betterment works in some situations, removal of assets from harm's way and relocation to other parts of the shire have actually seen those types of improvements occur. And if I may, my day job is as Director of Engineering at Tweed Shire Council. On the Far North Coast we are well-versed in, and have a history of, unfortunately, quite a number of disasters in recent years.

We have undertaken a number of works since probably the first of our major floods in 2017, which has involved a number of resilience measures—as I said, closing down some facilities, relocating others, and also building in flood resilience works. In 2017, we had our flood insurance restricted. In 2022, we actually lost all of that flood insurance. Following significant amounts of work that had been done on a large cross-section of our insurable assets, in the last few months we've received advice from our insurers that we have, in fact, had some of that flood insurance reinstated, so there is some coverage there that we didn't have six or 12 months ago.

The CHAIR: Is that because you have undertaken some mitigation works, some sort of engineering solution to make it more insurable today than it had been in recent years?

TIM MACKNEY: Correct. We have removed some high-risk assets from the flood plain. We had a tourist information centre, we've had a community preschool and we've had a few other buildings that we've removed from the flood plain. We have a plan in place to remove our main works depot from the flood plain up to new flood-free land in the new industrial estate, and that is currently underway. Then we also have resilience measures which have been undertaken on a number of sites where we have rebuilt. Rather than rebuilding as they were with gyprock and timber partitions and chipboard kitchens, we have looked to utilise much more resilient reconstruction methods and materials, and we've had the insurance companies' underwriters come and look at what we've done.

Subsequent to that, we've also had further disasters such as Tropical Cyclone Alfred, which gave us a real-life test, and things such as our cattle yards in Murwillumbah were operational within days, whereas previously they'd been offline for some six months after the 2022 floods. So there has been some really concrete risk improvements, both to how the community can get their assets back up and running quickly, but also the insurance. People have said the risk to them is obviously reduced, and they are prepared to insure us again.

The CHAIR: Thank you. They are excellent examples, I really appreciate that.

Ms LIZA BUTLER: Can you expand upon your submission about how you have seen the Authority's response to disasters evolve and how you have seen that improved? Are there any areas that you think that they should be addressing for continual improvement in the future?

DAVID ELLIOTT: The submission pretty much states the fact that we, as I said in my opening remarks, are comfortable with the progress. It is early days. There were horror stories when it came to grant applications and the time it's taken for grant applications to be realised. I specifically refer to the fact that what takes two years in New South Wales had, in the past, taken three weeks in Queensland. That is because we have had multiple agencies involved in the process. We're very comfortable with the way that the Reconstruction Authority has made those problems go away. It's great to see a government department being able to come in over the top. Again in our submission—Tim will be able to specifically give you case studies. But there has been much more operational effectiveness. We've certainly seen a better level of organisation when it comes to responses. Tim, do you have any specific case studies you want to refer to?

TIM MACKNEY: Yes, certainly. Thank you, Mr Elliott. There's a number of steps to this. Again, with Tweed, we've had a long history here working right back with the Office of Emergency Management, Resilience NSW, the North Coast reconstruction corporation—as it was for the 2022 floods—and then that subsequently morphing into RA. We've seen a general improvement and a significant improvement in the responsiveness and, I'd suggest, the proactiveness of the New South Wales Government over that time period, regardless of which entity was involved or took the lead. That has culminated in what we see as probably best practice now in the centralised model that we are fully supportive of with NSW RA.

One of the benefits of sitting at the Tweed and being able to look just over the border is that we have seen the success of QRA [Queensland Reconstruction Authority]. A lot of our consultants, a lot of our contractors, a lot of our experts who actually help us get back on our feet have dealt significantly with QRA because a lot of them are based in that south-east Queensland location. We see, I suppose, the model that has been put forward is very close to that which we understand and have seen for some time in Queensland. We are fully supportive of that. As Mr Elliott said in his opening remarks, we do feel to some extent that this review may be a little bit early in that we are still moving through a teething period. The Reconstruction Authority only last month took over as the administering agency from Transport for NSW and the Public Works authority, which is a major interface for local government in terms of restoration works after an event.

I'm not quite sure that I've answered your question, but certainly there has been a general improvement. Specifically, under RA, we see this centralisation occurring where we have one entity that we speak to about things such as the disaster adaptation plans, the DAPs, and that forward-looking strategic approach to prevention and preparedness. At the same time, we are hopeful that the work that's taking over from Transport and Public Works as the administering agencies will help us in that restoration and recovery period or phase. Certainly there have been some really good inroads in terms of the interfaces with our community networks and the way in which we've been able to interface with RA at that community level, both with spontaneous volunteers and also opening up recovery centres. Again, I've got to stress, it's not perfect and there are issues, but we do feel that we're moving in the right direction.

Ms LIZA BUTLER: I just want to ask about applying for betterment funding. Instead of building the same and it being washed away again, have you found an improvement in applying for betterment?

DAVID ELLIOTT: Tim can answer that.

TIM MACKNEY: No, we haven't. Specifically with the RA, no, we haven't. But I think that's, again, a function of timing rather than anything else. Certainly the, if I can call it rhetoric, that we're seeing from all levels is positive. People are really understanding that betterment and resilience is needed. A lot of those examples I gave you earlier as to success stories for Tweed have actually come through our insurance payouts after those events. What we actually found was that, ironically, those insurance payouts gave us more flexibility. We received the money, and then we could do what we saw was best and best outcome for our communities, and that has resulted in us seeing that investment or that insurance reinstated.

Unfortunately, with the government grants systems, again, while the discussions at a higher level have been excellent and very positive, the realities of rolling out grant funding in a way that complements and supplements the existing DRFA [Disaster Recovery Funding Arrangements] arrangements have been very difficult. To give you an example, we are only just now starting on betterment of about \$30 million worth of road and culvert repairs from the 2022 floods, mainly due to, I guess, the difficulties of trying to marry up two different funding sources. That all predates the RA, and they have been very helpful in trying to assist with that process. Again, I can only say that the rhetoric, for want of a better term, has been very positive, and we're seeing that things, I believe, will start to head in the right direction. But I don't believe we've had the opportunity since RA has taken the reins to really see significant investment in betterment.

DAVID ELLIOTT: Just to wrap that point up, if you speak to any engineer in New South Wales, particularly in regional New South Wales, the term "build back better" is normally something that's tattooed across their forehead. It's a message that I think RA could use a lot more, highlighting the fact that they're aware of the best way to mitigate loss after natural disaster is to make sure that we build back better. I knew from my time in the Emergency Services portfolio—certainly after the 2019-20 bushfires—we were so quick to allow people to reconstruct what they'd had lost or build back what had lost. There were many an occasion where planning laws and DAs [development applications] were just set aside, and something that had been built 100 years ago over within the realms of what was allowed 100 years ago, if indeed there were rules, in the construction of a home or a factory or a shop when it was made—they were all set aside. Now, that was a frenzy. I'm not stepping away from that decision or saying it was a bad decision, but it certainly is in stark contrast to what an engineer in a country town would want to occur in the event that they had been the victims of a nasty weather event or a natural disaster. It's certainly a narrative that needs to be used, and it needs to be encouraged.

TIM MACKNEY: If I could also add to my comments, which were, I suppose, probably very much focused on council infrastructure. Again, in the community, we've seen some excellent inroads, particularly around voluntary house purchases and voluntary house upgrades or betterment to homes. The house purchasing, in a way, is a betterment outcome for housing stock. It's removing people from harm's way. Certainly on the Northern Rivers, there have been over 500 homes repurchased and removed from harm's way in the flood zone. That's an excellent long-term outcome that is going to improve betterment, reduce those impacts and keep people out of harm's way. I forget the exact numbers, but well over 1,000 homes have had that resilience piece, which means they will be up and running much faster after future events. That has been under RA's watch, so there have been some very, very good outcomes.

My understanding is that in some of the more recent disasters, there has been less commitment to some of those wide-ranging programs. For instance, on the Mid North Coast or the MidCoast and Taree disasters, my understanding is that those very successful programs that ran on the North Coast are not necessarily being run out in those areas. Unfortunately, I don't have firsthand experience in that. If that were the case, we would see that as a potential backward step. We would certainly welcome that ongoing work that's been happening on the Northern Rivers and would suggest that what we actually need to do is to get on the front foot for future events so that, as Mr Elliott said, we don't have people rebuilding in harm's way by the time State and local governments get to the point that they can offer those buybacks. We need to have that almost ready to go on the shelf. We know the areas that we'd like to offer buybacks for, and when they're damaged next time that comes out on day two, so that people don't go and rebuild and sell their property to unsuspecting people who end up on the floodplain again.

The CHAIR: Thank you, Mr Mackney. There's been some commentary in some of the other submissions towards that end. In theory, we've only got five minutes left, but we were five minutes late starting. Would you be prepared to stay on for an extra five minutes, which will give us the full 30 minutes we'd hope to spend with you?

DAVID ELLIOTT: Yes.

Mr ROY BUTLER: Good afternoon, gents. Nice to see you again, David. We have a range of disasters that can occur. I got to experience one of the very unique ones, which was a power outage in the Far West. It came with zero warning. There was no warning for it. For other things, like Cyclone Alfred, we had some warning. We

knew something was happening. It could have been a lot worse than it was, but it wasn't. How can the Authority improve the immediate or initial response to disasters that occur without warning? What would it need to do to do better in that initial response phase?

DAVID ELLIOTT: If you're talking about without warning completely, as opposed to 24 hours or 48 hours, which is also in the mix, there's very limited you can do. You can't prepare for a Newcastle earthquake. You can't prepare for a power outage. You can't prepare for a dam breaking—well, not really. And, as you well know, nothing can prepare you for a mouse plague. Without wanting to build RA up into some sort of crack SAS team of respondents, I think the notion—the military and the police do desktop exercises, as you know, Roy, and I think that part of RA's prep for those types of incidents should be regular, realistic desktop exercises or "TEWTs" [Tactical Exercise Without Troops], as you and I used to call them. I think it's important that the community has faith that RA has a broad mixture of responses to any number of incidences that may occur in New South Wales. I think the community needs to see that.

And then, of course, when you do a PXR [Post Exercise Report] after a desktop exercise like that, you can circulate it to the engineering fraternity—who are, I hasten to add, normally the first respondents in communities when it does come to responding to a natural disaster or a major incident—and have them critically evaluate the exercise or the SOPs [Standard Operating Procedure] that might be enforced upon RA, and, of course, make sure that those exercises are clinically pulled apart and the maximum amount of effort is put into it. But at the end of the day—what is the famous presidential saying?—you've got unknowns and there are known unknowns and we don't know the unknown unknowns. I think we need to make sure that we have a massive big left and right of arc and we say, "These are the incidents that could occur. We can't exercise and prepare for all of them, but these are the things that may or may not occur, so let's have desktop exercises for every single one of those potential natural disasters every year." Let's circulate the post-exercise review or the post-exercise report and, speaking from the Institute of Public Works' point of view, make sure that the engineers across the State are comfortable with any standard operating procedures or any plans.

TIM MACKNEY: As Mr Elliott said, it is difficult to respond in short time frames when there's very little lead time. Many of us in councils wear multiple hats, so many of us are LEMOs and things like that in the response phase of events. The crucial part to that response phase can easily be applied elsewhere, which is within RA's remit. I'd suggest that, certainly, building up those relationships in peacetime and ensuring really clear governance arrangements so that it's clear who is responsible for what are really important items that should be done. One of the issues that, as councils, we raise—and we've had some real success, again, on the Northern Rivers around community resilience networks—is that we are preparing the community so that they are resilient and they are ready themselves. But that is a very resource-hungry type of work that needs to happen in peacetime.

Invariably, what happens is, after a disaster, we get two years worth of funding. We put someone on temporarily, and then that funding disappears and all of the good work can very easily be undone. As you'd appreciate, with community resilience networks, the community itself changes and people move on, so there's a real need to keep that fresh. So there are those sorts of things, but also to not lose sight of the fact that—let's try to avoid the magnitude of what we are dealing with through that preparedness and through those resilience or prevention measures. Again, that is where we are really seeing the strength of RA will come to the fore. Things like the disaster adaptation plans are all designed to improve those longer term outcomes. We may not avoid the actual event itself, but let's work on reducing the consequences. That, in itself, will help any event, whether you've got that forewarning or not.

DAVID ELLIOTT: Roy, can I just can I just add on to that? I've got to remind myself occasionally that it is the Reconstruction Authority; it's not the response authority. I still have PTSD over defence aid during the bushfires. But one thing that I will put on record is the fact that, from the community's point of view, the swifter you go to reconstruction, the better. The swifter you go away from recovery or response to reconstruction, the better, because the community gets over the PTSD, for want of a better word, quicker. They like to know that it's going to be business as usual as quickly as possible. When engineers go in and start measuring stuff up, that makes them feel confident and comfortable.

I saw that, particularly, with some of the towns in the Lismore electorate that I visited with Janelle Saffin after the bushfires, and it works. You could see the change in their attitudes when they went from recovery or response to reconstruction. But Tim mentioned the word "responsibility", and I think that's a keyword we need to use in any discussion about reconstruction. We've got to make sure that we're very conscious about whose responsibility is what, because people lose confidence in government if they think that they're shirking their responsibilities.

The Hon. SCOTT BARRETT: I'll probably bookend this chat a little bit by coming back to one of the Chair's earlier questions about the preparation work that has happened since the Lismore floods, in particular, as

far as what work has been done to reduce the impact of future events. Mr Mackney, you gave a few examples, but to me a lot of them were how to reduce the impact when there is a flood, as far as moving buildings and improving the quality of those buildings. Are you aware of any bigger scale projects that might deliver some broader community protection? I'm thinking of things like levee banks or dams or dredging the other end, to either stop water getting in there or move it away quicker at the end.

TIM MACKNEY: Yes, certainly, and I realise now that I think I'd said I had two parts to that answer and I only addressed the first. The voluntary house purchasing and raising is an example of where things are improving across a community. There have been works also up and down the coast and, I believe, inland on levees. Certainly, within the Tweed area and Lismore areas there have been upgrades—I guess we'd call them betterment and resilience works—undertaken on levees and pump stations and those types of things, which obviously protect parts of our community that are behind those levees.

In the Tweed, we have an industrial land swap that has occurred, which is a little bit like New South Wales' Grantham example, but it's for industrial properties and businesses where those who were on the flood plain were able to apply for land up out of the flood plain in a new industrial subdivision that council built. There are some examples, and that was funded by State and Federal funding to get that off the ground. That is, in fact, where our new depot will be, but there are a number of local businesses that are moving into those areas as well. So, yes, there are definitely examples. Would I like to see more? Most definitely. Again, I think this is where I go back to the DAPs and the fact that they are a strategic document that should allow for that funnelling of funding and resourcing to the areas where we are going to get the best outcomes and the biggest bang for our buck.

The Hon. SCOTT BARRETT: If I ask a question, you could perhaps take it on notice rather than me putting in a supplementary. Could you document a couple of those examples of where that infrastructure has happened to reduce—I'm not talking about moving a house so that when the water goes there it doesn't flood but about stopping the water from getting there in the first place.

DAVID ELLIOTT: You would start with Warragamba Dam and work your way back, but it is unfortunately the exception rather than the rule. We can take it on notice and get our chief engineer to do some work on that.

The Hon. SCOTT BARRETT: In those recent times under RA.

DAVID ELLIOTT: Yes. I think it'll be a very short response.

The CHAIR: Part of the work of the RA is around preparedness. They're engineering solutions, ultimately—all the levee banks or the retention basins. There are a lot of engineering solutions. Thank you so much to both of you gentlemen. It was good to see you again and have you appear before the Committee this afternoon. I think you took that little last question there on notice. Rest assured, we will send you the transcript with all the context so you can understand the context of the question that you have taken on notice. The Committee may also develop some supplementary questions, which we would send to you. If we do that, we ask that you respond within 14 days, if that's possible. If it's not, please talk to us about that. That concludes our public hearing for today. I place on record my thanks to all of the witnesses and all of the people who made submissions. In addition, I thank the Committee members, the Committee staff, Hansard and audiovisual services. I thank everyone for their assistance to conduct the hearings today. Thank you, gentlemen.

(The witnesses withdrew.)

The Committee adjourned at 16:25.